



**T&T Industrial, Inc.**

**T&T Industrial, Inc. Employee Handbook**

**Summer 2025**

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# Core Policies

## 1.0 Welcome

### 1.1 Welcome to T&T Industrial, Inc.

Welcome! You have just joined a dedicated organization. We hope that your employment with T&T Industrial, Inc. will be rewarding and challenging. We take pride in our employees as well as in the products and services we provide.

T&T complies with all federal and state employment laws, and this handbook generally reflects those laws. T&T also complies with any applicable local laws, although there may not be an express written policy regarding those laws contained in the handbook.

The employment policies and/or benefits summaries in this handbook are written for all employees. When questions arise concerning the interpretation of these policies as they relate to employees who are covered by a collective-bargaining agreement, the answers will be determined by reference to the actual union contract, rather than the summaries contained in this handbook.

Please take the time now to read this handbook carefully. Sign the acknowledgment at the end to show that you have read, understood, and agree to the contents of this handbook, which sets out the basic rules and guidelines concerning your employment. This handbook supersedes any previously issued handbooks or policy statements dealing with the subjects discussed herein. T&T reserves the right to interpret, modify, or supplement the provisions of this handbook at any time. Neither this handbook nor any other communication by a management representative or other, whether oral or written, is intended in any way to create a contract of employment. Please understand that no employee handbook can address every situation in the workplace.

If you have questions about your employment or any provisions in this handbook, contact Human Resources.

We wish you success in your employment here at T&T Industrial, Inc.!

All the best,

Carson & Jana Tesch, Owners  
T&T Industrial, Inc.

### 1.2 At-Will Employment

Your employment with T&T Industrial, Inc. is on an "at-will" basis. This means your employment may be terminated at any time, with or without notice and with or without cause. Likewise, we respect your right to leave T&T at any time, with or without notice and with or without cause.

Nothing in this handbook or any other Company document should be understood as creating a contract, guaranteed or continued employment, a right to termination only "for cause," or any other guarantee of continued benefits or employment. Only the President of T&T has the authority to make promises or negotiate with regard to guaranteed or continued employment, and any such promises are only effective if placed in writing and signed by the President.

If a written contract between you and T&T is inconsistent with this handbook, the written contract is controlling.

Nothing in this handbook will be interpreted, applied, or enforced to interfere with, restrain, or coerce employees in the exercise of their rights under Section 7 of the National Labor Relations Act.

### **1.3 Ethics Code**

T&T Industrial, Inc. will conduct business honestly and ethically wherever operations are maintained. We strive to improve the quality of our services, products, and operations and will maintain a reputation for honesty, fairness, respect, responsibility, integrity, trust, and sound business judgment. Our managers and employees are expected to adhere to high standards of business and personal integrity as a representation of our business practices, always consistent with their duty of loyalty to T&T.

We expect that managers, foremen, supervisors, and employees will not knowingly misrepresent T&T and will not speak on behalf of T&T unless specifically authorized. The confidentiality of trade secrets, proprietary information, and similar confidential commercially-sensitive information (i.e. financial or sales records/reports, marketing or business strategies/plans, product development, customer lists, patents, trademarks, etc.) about T&T or operations, or that of our customers or partners, is to be treated with discretion and only disseminated on a need-to-know basis (see Policy 10.1).

Violation of the Ethics Code can result in discipline, up to and including termination of employment. The degree of discipline imposed may be influenced by the existence of voluntary disclosure of any ethical violation and whether the violator cooperated in any subsequent investigation.

### **1.4 Revisions to Handbook**

This handbook is our attempt to keep you informed of the terms and conditions of your employment, including T&T Industrial, Inc. policies and procedures. The handbook is not a contract. T&T reserves the right to revise, add, or delete from this handbook as we determine it to be in our best interest, except the policy concerning at-will employment. When changes are made to the policies and guidelines contained herein, we will endeavor to communicate them in a timely fashion, typically in a written supplement to the handbook or in a posting on company bulletin boards.

## **2.0 T&T Industrial, Inc. Commitments**

### **2.1 Commitment to Equal Opportunity Employment and No-Harassment Policy**

#### **Equal Opportunity Statement**

T&T Industrial, Inc. is committed to the principles of equal employment. We are committed to complying with all federal, state, and local laws providing equal employment opportunities, and all other employment laws and regulations. It is our intent to maintain a work environment that is free of harassment, discrimination, or retaliation because of age (40 and older), race, color, national origin, ancestry, religion, sex, sexual orientation (including transgender status, gender identity or expression), pregnancy (including childbirth, lactation, and related medical conditions), physical or mental disability, genetic information (including testing and characteristics), veteran status, uniformed servicemember status, or any other status protected by federal, state, or local laws. T&T is dedicated to the fulfillment of this policy in regard to all aspects of employment, including but not limited to recruiting, hiring, placement, transfer, training, promotion, rates of pay, and other compensation, termination, and all other terms, conditions, and privileges of employment.

T&T will conduct a prompt and thorough investigation of all allegations of discrimination, harassment, retaliation, or any violation of the Equal Employment Opportunity Policy in a confidential manner. T&T will take appropriate corrective action, if and where warranted. T&T prohibits retaliation against employees who provide information about, complain about, or assist in the investigation of any complaint of discrimination or violation of the Equal Employment Opportunity Policy.

We are all responsible for upholding this policy. You may discuss questions regarding equal employment opportunity with your Manager/Foreman or any other designated member of management.

### Policy Against Workplace Harassment

T&T Industrial, Inc. has a strict policy against all types of workplace harassment, including sexual harassment and other forms of workplace harassment based upon an individual's age (40 and older), race, color, national origin, ancestry, religion, sex, sexual orientation (including transgender status, gender identity or expression), pregnancy (including childbirth, lactation, and related medical conditions), physical or mental disability, genetic information (including testing and characteristics), veteran status, uniformed servicemember status, or any other status protected by federal, state, or local laws. All forms of harassment of, or by, employees, vendors, visitors, customers, and clients are strictly prohibited and will not be tolerated.

### Sexual Harassment

Sexual harassment is defined as unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature when (1) submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment; (2) submission to, or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual; or (3) such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive work environment.

While it is not possible to identify every act that constitutes or may constitute sexual harassment, the following are some examples of sexual harassment:

- Unwelcome requests for sexual favors.
- Lewd or derogatory comments or jokes.
- Comments regarding sexual behavior or the body of another person.
- Sexual innuendo and other vocal activities such as catcalls or whistles.
- Obscene letters, notes, emails, invitations, photographs, cartoons, articles, or other written or pictorial materials of a sexual nature.
- Repeated requests for dates after being informed that interest is unwelcome.
- Retaliating against another for refusing a sexual advance or reporting an incident of possible sexual harassment to T&T or any government agency.
- Offering or providing favors or employment benefits such as promotions, favorable evaluations, favorable assigned duties or shifts, etc., in exchange for sexual favors; and
- Any unwanted physical touching or assaults or blocking or impeding movements.

### Other Harassment

Other workplace harassment is verbal or physical conduct that insults or shows hostility or aversion toward an individual because of the individual's age (40 and older), race, color, national origin, ancestry, religion, sex, sexual orientation (including transgender status, gender identity or expression), pregnancy (including childbirth, lactation, and related medical conditions), physical or mental disability, genetic information (including testing and characteristics), veteran status, uniformed servicemember status, or any other status protected by federal, state, or local laws.

Again, while it is not possible to list all the circumstances that may constitute other forms of workplace harassment, the following are some examples of conduct that may constitute workplace harassment:

- The use of disparaging or abusive words or phrases, slurs, negative stereotyping, or threatening, intimidating, or hostile acts that relate to the above protected categories.
- Written or graphic material that insults, stereotypes, or shows aversion or hostility toward an individual or group because of one of the above protected categories and that is placed on walls, bulletin boards, email, voicemail, or elsewhere on our premises, or circulated in the workplace; and
- A display of symbols, slogans, or items that are associated with hate or intolerance toward any select group.

### Reporting Discrimination and Harassment

If you feel that you have witnessed or have been subjected to any form of discrimination or harassment, immediately notify any member of management.

T&T prohibits retaliation against employees who, based on a reasonable belief, provide information about, complain, or assist in the investigation of any complaint of harassment or discrimination.

We will promptly and thoroughly investigate any claim and take appropriate action where we find a claim has merit. To the extent possible, we will retain the confidentiality of those who report suspected or alleged violations of the harassment policy.

Discipline for violation of this policy may include, but is not limited to, reprimand, suspension, demotion, transfer, and discharge. If T&T determines that harassment or discrimination occurred, corrective action will be taken to effectively end the harassment. As necessary, T&T may monitor any incident of harassment or discrimination to assure the inappropriate behavior has stopped. In all cases, T&T will follow up as necessary to ensure that no individual is retaliated against for making a complaint or cooperating with an investigation.

Employees also have the right to file charges of discrimination with the following government agencies:

Oklahoma Employment Security Commission  
PO Box 52003  
Oklahoma City, OK 73152-2003  
Administrative Offices: 405-557-7100  
<https://oklahoma.gov/oesc/individuals/complaints>

### Equal Employment Opportunity Commission

215 Dean A. McGee Ave., Suite 524  
Oklahoma City, OK 73102  
405-666-0360  
<https://publicportal.eeoc.gov>

There are time limits for filing complaints with both agencies.

If you have any questions about this policy or about how to proceed with a concern or complaint, you should not hesitate to contact the Human Resources Department, or your supervisor.

## **2.2 Policy Against Workplace Violence**

As the safety and security of our employees, vendors, contractors, and the public is in the best interests of T&T Industrial, Inc., we are committed to working with our employees to provide a work environment free from violence, intimidation, and other disruptive behavior.

### Zero Tolerance Policy

T&T has a zero-tolerance policy regarding workplace violence and will not tolerate acts or threats of violence, harassment, intimidation, and other disruptive behavior, either physical or verbal, that occurs in the workplace or other areas. This applies to management, co-workers, employees, and non-employees such as contractors, customers, and visitors.

Workplace violence can include oral or written statements, gestures, or expressions that communicate a direct or indirect threat of physical harm, damage to property, or any intentional behavior that may cause a person to feel threatened.

### Prohibited Conduct

Prohibited conduct includes, but is not limited to:

- Physically injuring another person.
- Threatening to injure a person or damage property by any means, including verbal, written, direct, indirect, or electronic means.
- Taking any action to place a person in reasonable fear of imminent harm or offensive contact.
- Possessing, brandishing, or using a firearm on Company property or while performing Company business except as permitted by state law.
- Violating a restraining order, order of protection, injunction against harassment, or other court order.

### Reporting Incidents of Violence

Report to your Manager/Foreman or appropriate department, in accordance with this policy, any behavior that compromises our ability to maintain a safe work environment. All reports will be investigated immediately and kept confidential, except where there is a legitimate need to know. You are expected to cooperate in any investigation of workplace violence.

### Violations

Violating this policy may subject you to criminal charges as well as discipline up to and including immediate termination of employment.

## **2.3 Anti-Retaliation Commitment**

T&T Industrial, Inc. encourages reporting of all perceived incidents of discrimination or harassment in violation of T&T Industrial, Inc.'s policy listed above. It is T&T Industrial, Inc.'s policy to investigate such reports, and T&T Industrial, Inc. prohibits any and all retaliation against any individual who reports incidents that they in good faith believe to be violations of this policy or participates in an investigation of such reports.

If an Employee believes they have been subject to retaliation, they should report it immediately to their manager or the Human Resources Department. The Human Resources Department will then take appropriate action. Any person found to have retaliated against an individual for reporting discriminatory conduct or harassment will be subject to appropriate disciplinary action, up to and including termination.

## **2.4 General Safety Policy**

It is the responsibility of all T&T Industrial, Inc. employees to maintain a healthy and safe work environment, report any health or safety hazards, and follow T&T health and safety rules. Failure to do so may result in disciplinary action, up to and including termination of employment. T&T also requires that all occupational illnesses or injuries be reported to your Manager/Foreman as soon as reasonably possible and that an occupational illness or injury form be completed on each reported incident.

## **2.5 Drug and Alcohol-Free Workplace and Testing Policy**

### **A. Applicability**

This policy shall apply to T&T Industrial, Inc. employees with the exception that employees covered by a collective bargaining agreement should refer to such an agreement.

All other employees are subject to drug and alcohol testing as provided for in this Policy. However, as discussed below, for employees who possess a valid Oklahoma medical marijuana license only, the



consequences of a positive drug test for marijuana may be different depending on whether the employee works in a position designated as involving safety sensitive job duties.

Safety sensitive job duties include any tasks or duties that T&T reasonably believes could affect the safety and health of the employee performing the task or others. T&T has discretion to designate what positions include safety sensitive job duties. For more information about whether your particular position includes safety sensitive job duties, consult your written job description and/or contact Human Resources.

## **B. Policy**

T&T operates as a drug and workplace. The use, sale, possession, manufacture, dispensation or distribution of illegal drugs, intoxicants, and controlled substances, as well as improper use of legal drugs or intoxicants, is prohibited in or on T&T's property, job sites or vehicles, as well as under any circumstances when an individual is acting as a representative, agent or employee of T&T while conducting Company business. Improper use of legal drugs refers to the use of prescription medication not prescribed for current personal treatment by a licensed medical professional, or the use of prescription or nonprescription medication to an extent or in a manner that impairs the performance of your job duties (including medical marijuana). Any violation of this provision is the cause for discipline, up to and including immediate discharge.

Off the job drug and or alcohol use, which results in job impairment or adversely affects an employee's job performance, or which jeopardizes the safety of other employees, the public, or Company equipment is also prohibited. Employees should not report to work under the influence of any illegal drug, alcoholic beverage, intoxicant, narcotic or other substance including legal drugs which may adversely affect their ability to work or jeopardize the safety of themselves or others. Any violation of this provision is the cause for discipline, up to and including immediate discharge.

**Medical Marijuana Notice:** T&T prohibits the use, possession, or consumption of marijuana, including medical marijuana, on its property or premises as well as during an employee's hours of employment or fulfillment of employment obligations regardless of whether an employee holds an Oklahoma medical marijuana license (MML). T&T prohibits all employees from being under the influence of marijuana, including medical marijuana or medical marijuana products, while at work or during the fulfillment of any employment obligations, regardless of whether an employee has an MML. No employee has to disclose to T&T that they have an MML except in connection with a positive test result for marijuana. If an employee with a valid MML tests positive for marijuana, that employee should then present their valid MML for inspection and consideration. See the section on discipline, below, for consequences of testing positive for marijuana.

## **C. Types of Testing**

**Applicant Testing:** Applicants for all job positions will be required to undergo testing for drugs upon a conditional offer of employment. An applicant is a person who has applied for a position with T&T and received a conditional offer of employment. Applicants will be provided with a copy of this policy on or before acceptance of a conditional offer of employment. A positive test result as well as failing or refusing to undergo the requested testing may be used as a basis for refusing to hire the applicant.

**Transfer/Reassignment Testing:** T&T may require an employee who transfers to a different position or who is reassigned to a different position to undergo drug or alcohol testing.

**For Cause Testing:** T&T may require an employee to undergo drug or alcohol testing at any time it reasonably believes an employee may be under the influence of drugs or alcohol including, but not limited to, the following circumstances: **a.** drugs or alcohol on or about the employee's person or in the employee's vicinity; **b.** conduct on the employee's part that suggests impairment or influence of drugs or alcohol; **c.** a report of drug or alcohol use while at work or on duty; **d.** information that an employee has tampered with drug or alcohol testing at any time; **e.** negative performance patterns; **f.** excessive or unexplained absenteeism or tardiness.

**Post-Accident Testing:** T&T may require an employee to undergo drug or alcohol testing if the employee has sustained an injury while at work, caused an injury to another person, or caused T&T's property to be damaged (including damage to equipment). Applicable state workers' compensation laws may exclude an

employee from eligibility for benefits if the employee refuses to submit to testing or receives a positive test result.

**Random Testing:** T&T may require an employee to undergo drug or alcohol testing at random. Random testing may be limited to particular employment classifications or groups.

**Fitness for Duty, Return from Leave, or Other Periodic Testing:** T&T may require an employee to undergo drug or alcohol testing if the test is conducted as a routine part of a routinely scheduled employee fitness-for-duty medical examination or is requested or required by the employer in connection with an employee's return to work from a leave of absence, or which is otherwise scheduled routinely as part of T&T's written policy.

**Post-Rehabilitation Testing:** T&T may require an employee to undergo unannounced drug or alcohol testing for a period of up to two years commencing with the employee's return to work, following a positive test or following participation in a drug or alcohol dependency treatment program.

#### **D. Testing Procedures and Results**

All collection and testing shall be done in accordance with the rules issued by the Oklahoma State Board of Health. The substances tested shall be drugs and alcohol as defined by the Standards for Workplace Drug and Alcohol Testing Act, including controlled substances approved for testing by rule of the State Commissioner of Health.

T&T will make appointments for current employees during or immediately after regular work periods and all time shall be deemed work time for purposes of compensation and benefits for current employees. T&T will make appointments for applicants at a testing facility approved by the State Board of Health.

T&T will pay the costs of testing. However, if the employee or applicant requests a confirmation test of a sample within 24 hours of receiving notice of a positive test in order to challenge the results of the positive test, that employee/applicant shall pay the costs of the confirmation test of that sample. If the confirmation test reverses the findings of the challenged test, the employer will reimburse the individual for their costs in challenging the test.

All sample collection and testing for drugs and alcohol pursuant to the provisions of this policy shall be conducted in accordance with the following conditions:

- Samples shall be collected and tested only by individuals deemed qualified by the State Board of Health and may be collected on the premises of T&T.
- Only samples deemed appropriate by the State Board of Health for drug and alcohol testing shall be collected.
- The collection of samples shall be performed under reasonable and sanitary conditions.
- A sample shall be collected in sufficient quantity for splitting into two separate specimens, pursuant to rules of the State Board of Health to provide for any subsequent independent analysis in the event of challenge of the test results on the main specimen.
- Samples shall be collected and tested with due regard to the privacy of the individual being tested. In the instances of urinalysis, no Company representative, agent, or designee shall directly observe an applicant or employee in the process of producing a urine sample; provided, however, collection shall be in a manner reasonably calculated to prevent substitutions or interference with the collection of testing reliable samples.
- Sample collection shall be documented, and the documentation procedures shall include: **a.** labeling of samples so as to reasonably preclude the probability of erroneous identification of test results; and **b.** an opportunity for the applicant or employee to provide notification of any information which the applicant or employee considers relevant to the test, including identification of any currently or recently used prescription or nonprescription drugs, or other relevant information. Employees using prescription drugs which might impact the test should report this information, including the name of

the authorized licensed medical practitioner who prescribed the drug, and the duration of the prescription, to the testing personnel immediately prior to any testing. Any over-the-counter drugs that may impact the test should be reported. If the employee is the holder of a MML, that should be reported to the testing facility/personnel prior to any testing.

- Sample collection, storage and transportation to the testing facility shall be performed so as to reasonably preclude the probability of sample contamination or adulteration.
- Sample testing shall conform to scientifically accepted analytical methods and procedures. Testing shall include confirmation of any positive test result by gas chromatography, gas chromatography-mass spectroscopy, or an equivalent scientifically accepted method of equal or greater accuracy as approved by State Board of Health rule, at the cutoff levels as determined by State Board of Health rule, before the result of any test may be used as a basis for refusal to hire a job applicant or any action by an employer.
- A written record of the chain of custody of the sample shall be maintained from the time of the collection of the sample until the sample is no longer required.

All applicants and employees covered under this policy have the right to explain, in confidence, the test results.

## **E. Recordkeeping and Confidentiality**

The reporting of the results of the drug and alcohol test shall be handled discreetly between the testing facility and T&T.

Records of all drug and alcohol test results and related information maintained by T&T shall be the property of T&T and, upon the request of the applicant or employee tested, shall be made available for inspection and copying to the applicant or employee. Except as provided in the next paragraph, T&T shall not release such records to any person other than the applicant, employee, or the testing facility.

Records of all drug and alcohol test results and related information maintained by the employer may be released by T&T for any of the following purposes: (i) as admissible evidence by T&T or the individual tested in a case or proceeding before a court of record or administrative agency if either the employer of the individual tested are named parties in the case or proceeding; (ii) In order to comply with a valid judicial or administrative order; or (iii) to T&T's employees, agents and representatives who need access to such records in the administration of the Standards for Workplace Drug and Alcohol Testing Act.

Additionally, T&T may enter into a contract with another employer or company to share the drug and alcohol test results of persons who work pursuant to such contractual agreement.

## **F. Consequences and Discipline**

If an applicant refuses to undergo testing, supplies or attempts to supply an altered or substituted sample, or receives a positive result for the presence of drugs or alcohol, the conditional offer of employment will be revoked. The applicant will not be hired.

Applicants in possession of a valid MML who are applying for positions that do not involve safety sensitive job duties will not be disqualified from employment or have their conditional offer of employment revoked solely on the basis of a positive drug test result for marijuana, its components, or metabolites. For all other applicants, including those in possession of a valid MML who are applying for designated safety sensitive job positions, a positive drug test result for marijuana, its components, or metabolites will disqualify the applicant from employment and the conditional offer of employment will be withdrawn.

If an employee refuses to undergo testing, supplies, or attempts to supply an altered or substituted sample, or receives a positive result for the presence of drugs or alcohol, the employee will be subject to discipline, up to and including immediate termination, at the discretion of T&T.

Employees in possession of a valid MML who are employed in positions that do not involve safety sensitive job duties will not be subject to discipline solely on the basis of a positive drug test result for marijuana, its components, or metabolites. For all other employees, including those in possession of a valid MML who are employed in designated safety sensitive job positions, a positive drug test result for marijuana, its components, or metabolites will be subject to discipline, up to and including immediate termination, at the discretion of T&T.

T&T prohibits all employees from being under the influence of marijuana, including medical marijuana or medical marijuana products, while at work or during the fulfillment of any employment obligations, regardless of whether the employee has a valid MML.

## **G. Appeal**

There is no right to appeal other than as set forth in this policy or as required by applicable law. If you have questions about this policy, please see Human Resources.

## **2.6 Smoke Free Workplace**

T&T Industrial, Inc. is concerned about the effect that smoking and secondhand smoke inhalation can have on its employees and clients. Smoking in offices, client areas, and restrooms is prohibited. This policy covers the smoking of any tobacco product and the use of oral tobacco products, "spit" tobacco and e-cigarettes, and it applies to both employees and visitors. We offer a smoke-free environment so that all employees are able to enjoy their work environment.

## **2.7 Problem Resolution & Reporting Policy**

T&T Industrial, Inc. takes employee concerns and problems seriously. T&T values each employee and strives to provide positive work experience. Employees are encouraged to bring any workplace concerns or problems they might have or know about to the attention of the organization.

All complaints and investigations are treated confidentially to the extent possible, and information is disclosed strictly on a need-to-know basis. The identity of the complainant is usually revealed to the parties involved during the investigation, and the HR Manager will take adequate steps to ensure that the complainant is protected from retaliation during and after the investigation. All information pertaining to a complaint or investigation under this policy will be maintained in secure files within the HR department.

T&T Industrial, Inc. has established the following procedure for lodging a complaint of harassment, discrimination, or retaliation. T&T will treat all aspects of the procedure confidentially to the extent reasonably possible.

1. Complaints should be submitted as soon as possible after an incident has occurred, preferably in writing to the appropriate party:
  - For issues raised against HR staff, report to the HR Manager; for issues raised against the HR Manager, report to CEO.
  - For issues raised against the CEO, report to COO.
  - For issues raised against any other staff member, report to the HR Manager.

The HR Manager may assist the complainant in completing a written statement or, in the event an employee refuses to provide information in writing, the HR Manager will dictate the verbal complaint.

2. Upon receiving a complaint or being advised by a supervisor or manager that violation of this policy may be occurring, the HR Manager will notify senior management and review the complaint with T&T's legal counsel.
3. The HR Manager (or appropriate party) will initiate an investigation to determine whether there is a reasonable basis for believing that the alleged violation of this policy occurred.
4. If necessary, the complainant and the respondent will be separated during the course of the investigation, either through internal transfer or administrative leave.

5. During the investigation, the HR Manager, together with legal counsel or other management employees, will interview the complainant, the respondent, and any witnesses to determine whether the alleged conduct occurred.
6. Upon conclusion of an investigation, the HR Manager or other person conducting the investigation will submit a written report of their findings to T&T. If it is determined that a violation of this policy has occurred, the HR Manager will recommend appropriate disciplinary action. The appropriate action will depend on the following factors:
  - the severity, frequency and pervasiveness of the conduct;
  - prior complaints made by the complainant;
  - prior complaints made against the respondent; and
  - the quality of the evidence (e.g., firsthand knowledge, credible corroboration).

If the investigation is inconclusive or if it is determined that there has been no violation of policy, but potentially problematic conduct may have occurred, the HR Manager may recommend appropriate preventive action.

7. Senior management may review the investigative report and any statements submitted by the complainant or respondent, discuss results of the investigation with the HR Manager and other management staff as appropriate, and decide what action, if any, will be taken.
8. Once a final decision is made, the HR Manager will meet with the complainant and the respondent separately and notify them of the findings of the investigation. If disciplinary action is to be taken, the respondent will be informed of the nature of the discipline and how it will be executed.

Note that T&T Industrial, Inc. takes the confidentiality of all parties involved very seriously. The need for confidentiality begins at the time in which the issue is brought to the attention of T&T Industrial, Inc.'s leadership. The fact that an investigation is underway, its subject matter, the processes followed, the materials gathered and, especially, the results of the investigation will always be treated confidentially, to the extent possible. This means that staff who are not complainants or respondents will not be privy to the details or results of investigations.

## **2.8 Commitment to the Americans with Disabilities Act (ADA)**

T&T Industrial, Inc. complies with the Americans with Disabilities Act (ADA), the Pregnancy Discrimination Act, and all applicable state and local fair employment practices laws and is committed to providing equal employment opportunities to qualified individuals with disabilities, including disabilities related to pregnancy, childbirth, and related conditions. Consistent with this commitment, T&T will provide reasonable accommodation to otherwise qualified individuals where appropriate to allow the individual to perform the essential functions of the job, unless doing so would create an undue hardship on the business.

If you require an accommodation because of your disability, it is your responsibility to notify your Manager/Foreman. You may be asked to include relevant information such as:

- A description of the proposed accommodation.
- The reason you need accommodation.
- How will accommodation help you perform the essential functions of your job.
- The expected duration of the proposed accommodation.

After receiving your request, T&T will engage in an interactive dialogue with you to determine the precise limitations of your disability and explore potential reasonable accommodations that could overcome those limitations. Where appropriate, we may need your permission to obtain additional information from your medical provider. All medical information received by T&T in connection with a request for accommodation will be treated as confidential.

T&T encourages you to suggest specific reasonable accommodation that you believe would allow you to perform your job. However, T&T is not required to make the specific accommodation requested by you and may provide an alternative accommodation, to the extent any reasonable accommodation can be made without imposing an undue hardship on T&T.

If leave is provided as a reasonable accommodation, such leave may run concurrently with leave under the federal Family and Medical Leave Act and/or any other leave where permitted by state and federal law.

T&T will not discriminate or retaliate against employees for requesting accommodation.

## **2.9 Commitment to Religious Accommodation**

T&T Industrial, Inc. is dedicated to treating its employees equally and with respect and recognizes the diversity of their religious beliefs. All employees may request accommodation when their religious beliefs cause a deviation from T&T dress code, or the individual's schedule, basic job duties, or other aspects of employment. T&T will consider the request but reserves the right to offer its own accommodation to the extent permitted by law. Some, but not all, of the factors that will be considered are cost, the effect that accommodation will have on current established policies, and the burden on operations — including other employees — when determining reasonable accommodation. At no time will T&T question the validity of a person's beliefs.

If you require a religious accommodation, speak with your Manager/Foreman.

## **3.0 Employment**

### **3.1 New Hires and Introductory Periods**

The first 90 days of your employment is considered an introductory period. During this period, you will become familiar with T&T Industrial, Inc. and your job responsibilities, and we will have the opportunity to monitor the quality and value of your performance and make any necessary adjustments in your job description or responsibilities. If T&T Industrial, Inc. determines that the designated introductory period does not allow sufficient time to thoroughly evaluate the employee's performance, the introductory period may be extended for a specified period.

During the introductory period, new employees are eligible for those benefits that are required by law, such as workers' compensation insurance and Social Security. At the successful conclusion of the introductory period, they may also be eligible for other Company-provided benefits, subject to the terms and conditions of each benefits program. Employees should read the information for each specific benefits program for the details on eligibility requirements.

Completion of this introductory period does not imply guaranteed or continued employment. Nothing that occurs during or after this period should be construed to change the nature of the "at-will" employment relationship.

### **3.2 Employment Classification**

It is the intent of T&T Industrial, Inc. to clarify the definitions of employment classifications so that employees understand their employment status and benefit eligibility. These classifications do not guarantee employment for any specified period of time. Accordingly, the right to terminate the employment relationship at will at any time is retained by both the employee and T&T Industrial, Inc.

Each employee is designated as either nonexempt or exempt from federal and state wage and hour laws. Nonexempt employees are entitled to overtime pay under the specific provisions of federal and state laws. Exempt employees are excluded from specific provisions of federal and state wage and hour laws. An employee's exempt or nonexempt classification may be changed only upon written notification by T&T Industrial, Inc. management.

In addition to the above categories, each employee will belong to one other employment category:

**Regular Full-Time.** Regular full-time employees are those who have completed their introductory period and are regularly scheduled to work at least 40 hours per week. Unless stated otherwise or specifically

permitted by law, all the benefits provided to employees at T&T Industrial, Inc. are for regular full-time employees only. This includes PTO, holiday pay, and other benefits of coverage.

**Regular Part-Time.** All employees who work fewer than 36 hours per week are considered part-time. Part-time employees are not eligible for T&T Industrial, Inc. benefits unless specified otherwise in this handbook, in the benefit plan summaries, or specifically permitted by law.

**Introductory.** Introductory employees are those whose performance is being evaluated to determine whether further employment in a specific position or with T&T Industrial, Inc. is appropriate and have not become eligible for T&T Industrial, Inc.'s voluntary benefits. Employees who satisfactorily complete the introductory period will be notified of their new employment classification.

### **3.3 Employment Authorization Verification**

New hires will be required to complete Section 1 of federal Form I-9 on the first day of paid employment and must present acceptable documents authorized by the U.S. Citizenship and Immigration Services proving identity and employment authorization no later than the third business day following the start of employment with T&T Industrial, Inc.. If you are currently employed and have not complied with this requirement or if your status has changed, inform your Manager/Foreman.

If you are authorized to work in this country for a limited period of time, you will be required to submit proof of renewed employment eligibility prior to expiration of that period to remain employed by T&T.

### **3.4 Reporting Changes to Personal Information**

It is your obligation to provide T&T Industrial, Inc. with your current contact information, including current mailing address and telephone number. Inform T&T of any changes to your marital or tax withholding status. Failure to do so may result in loss of benefits or delayed receipt of W-2 and other mailings. To make changes to this information, contact Human Resources.

### **3.5 Employment of Relatives and Friends**

The employment of relatives in the same area of an organization may cause serious conflicts and problems with favoritism and employee morale. In addition to claims of partiality in treatment at work, personal conflicts from outside the work environment can be carried over into day-to-day working relationships.

For purposes of this policy, a relative is any person who is related by blood or marriage, or whose relationship with the employee is similar to that of persons who are related by blood or marriage.

Relatives of current employees may not occupy a position that will be working directly for or supervising their relatives.

Although T&T Industrial, Inc. has no prohibition against employing relatives of current employees, we are committed to monitoring situations in which such relationships exist in the same area. In other cases where a conflict or the potential for conflict arises because of the relationship between employees, even if there is no line of authority or reporting involved, the employees may be separated by reassignment or, if necessary, terminated from employment.

We will not employ friends or relatives in circumstances where actual or potential conflicts may arise that could compromise supervision, safety, confidentiality, security, and morale at T&T Industrial, Inc. It is your obligation to inform T&T of any such potential conflict under this policy or under Policy 8.0, so T&T can determine how best to respond to the particular situation. This section is restated in Section 8.3.

### **3.6 Job Descriptions**

T&T Industrial, Inc. attempts to maintain a job description\* for each position. If you do not have a current copy of your job description, you should request one from your Manager/Foreman.

Job descriptions prepared by T&T serve as an outline only. Due to business needs, you may be required to perform job duties that are not within your written job description. Furthermore, T&T may revise, add to, or delete from your job duties per business needs. On occasion, T&T may need to revise job descriptions with or without advance notice to employees.

If you have any questions regarding your job description or the scope of your duties, please speak with your Manager/Foreman.

*\*Job descriptions are in process and may not be available for every position at this time.*

### **3.7 Posting of Openings**

T&T Industrial, Inc. desires to promote qualified employees from within where it believes that is possible, consistent with the need to assure that all positions are staffed by highly competent individuals. New job openings generally will be posted in the office or on our website once available.

### **3.8 Training Program**

In most cases, and for most departments, training employees is done on an individual basis by the department manager. Even if you have had previous experience in the specified functions of your job duties, it is necessary for you to learn our specific procedures, as well as the responsibilities of the specific position. If you ever feel you require additional training, consult your Manager/Foreman.

It is also your responsibility to check your emails for new trainings as well as to keep current on your licenses, certificates or credentials associated with your employment.

## **4.0 Workplace Guidelines & General Policies**

### **4.1 Standards of Conduct**

T&T Industrial, Inc. wishes to create a work environment that promotes job satisfaction, respect, responsibility, integrity, and value for all our employees, clients, customers, and other stakeholders. We all share the responsibility of improving the quality of our work environment. By deciding to work here, you agree to follow our rules.

While it is impossible to list everything that could be considered misconduct in the workplace, what is outlined here is a list of common-sense infractions that could result in discipline, up to and including immediate termination of employment. This policy is not intended to limit our right to discipline or discharge employees for any reason permitted by law.

Examples of inappropriate conduct include:

- Violation of the policies and procedures set forth in this handbook.
- Possessing, using, distributing, selling, or negotiating the sale of illegal drugs or other controlled substances.
- Being under the influence of alcohol during working hours on Company property (including in Company vehicles), or on Company business.
- Inaccurate reporting of the hours worked by you or any other employees.
- Providing knowingly inaccurate, incomplete, or misleading information when speaking on behalf of T&T or in the preparation of any employment-related documents including, but not limited to, job



applications, personnel files, employment review documents, intra-company communications, or expense records.

- Taking or destroying Company property.
- Possession of potentially hazardous or dangerous property (where not permitted) such as firearms, weapons, chemicals, etc., without prior authorization.
- Fighting with, or harassment of (as defined in our EEO policy), any fellow employee, vendor, or customer.
- Disclosure of Company trade secrets and proprietary and confidential commercially sensitive information (i.e., financial or sales records/reports, marketing or business strategies/plans, product development information, customer lists, patents, trademarks, etc.) of T&T or its customers, contractors, suppliers, or vendors.
- Refusal or failure to follow directions or to perform a requested or required job task.
- Refusal or failure to follow safety rules and procedures.
- Excessive tardiness or absences.
- Smoking in non-designated areas.
- Working unauthorized overtime.
- Solicitation of fellow employees on Company premises during working hours.
- Failure to dress according to Company policy.
- Use of obscene or harassing language (as defined by our EEO policy) in the workplace.
- Engaging in outside employment that interferes with your ability to perform your job at this Company.
- Gambling on Company premises.
- Lending keys or keycards to Company property to unauthorized persons.

Nothing in this policy is intended to limit your rights under the National Labor Relations Act, or to modify the at-will employment status where at-will is not prohibited by state law.

## **4.2 Attendance Policy**

If you know ahead of time that you will be absent or late, provide reasonable advance notice to your Manager/Foreman. You may be required to provide documentation of any medical or other excuse for being absent or late where permitted by applicable law.

T&T Industrial, Inc. reserves the right to apply unused paid time off to unauthorized absences where permitted by applicable law. Absences resulting from approved leave, vacation, or legal requirements are exceptions to the policy.

To maintain a safe and productive work environment, T&T Industrial, Inc. expects employees to be reliable and to be punctual in reporting for scheduled work. Employees are expected to report to work as scheduled, on time and prepared to start working. Employees also are expected to remain at work for their entire work schedule. Late arrival, early departure or other absences from scheduled hours are disruptive and should be avoided. In rare instances when employees cannot avoid being late to work or are unable to work as scheduled, they should notify their supervisor at least 2 hours prior to their scheduled shift.

Poor attendance and excessive tardiness are disruptive. Either may lead to disciplinary action, up to and including termination of employment.

This policy does not apply to absences or leave provided as a reasonable accommodation under the Americans with Disabilities Act (ADA).

### **Absence**

"Absence" is defined as the failure of an employee to report for work when they are scheduled to work. The two types of absences are defined below:

- Excused absence occurs when all the following conditions are met:

- The employee provides their supervisor with sufficient notice at least 48 hours in advance of the absence.
- The absence request is approved in advance by the employee supervisor.
- The employee has sufficient accrued paid time off (PTO) to cover the absence.

Unexcused absence occurs when any of the above conditions are not met. If it is necessary for an employee to be absent or late for work because of an illness or an emergency, the employee must notify their supervisor no later than the employee's scheduled starting time on that same day. If the employee is unable to call, they must make all reasonable efforts to have someone else make the call.

An unexcused absence counts as one occurrence for the purposes of discipline under this policy.

Employees with five or more consecutive days of excused absences because of illness or injury must give T&T Industrial, Inc. proof of physician care and a fitness for duty release prior to returning to work.

T&T Industrial, Inc. reserves the right to apply unused paid time off to unauthorized absences where permitted by applicable law. Absences resulting from approved leave, vacation, or legal requirements are exceptions to the policy.

### **4.3 Personal Appearance**

Your personal appearance reflects the reputation, integrity, and public image of T&T Industrial Inc. All employees are required to report to work neatly groomed and dressed. You are expected to maintain personal hygiene habits that are generally accepted in the community, including clean clothing, good grooming and personal hygiene, and appropriate attire for the workplace and the work being performed. This may include wearing uniforms or protective safety clothing and equipment, depending upon the job. Use common sense and good judgment in determining what to wear to work. Jewelry should not be worn if you are a laborer and not full-time office personnel.

Fragrant products, including but not limited to perfumes, colognes, and scented body lotions or hair products, should be used in moderation out of concern for others with sensitivities or allergies.

T&T, in accordance with applicable law, will reasonably accommodate employees with disabilities or religious beliefs that make it difficult for them to comply fully with the personal appearance policy unless doing so would impose an undue hardship on T&T. Contact your Manager/Foreman to request a reasonable accommodation.

Failure to comply with the personal appearance standards may result in being sent home to groom or change clothes. Frequent violations may result in disciplinary action, up to and including termination of employment.

### **4.4 Suggestion Policy**

At T&T Industrial, Inc., we welcome suggestions for continued improvement and welcome your ideas for better ways to produce or sell the products or services of our Company or meet customer and client needs. Discuss your ideas with your Manager/Foreman or another member of the management team.

We also encourage you to offer any suggestions derived from seminars, magazines, or other outside sources of information you believe would add value to T&T.

Understand that any suggestions, innovations, inventions, or other matter created by you on work time or with Company tools or property are considered to be the property of T&T.

## **4.5 Nonsolicitation/Nondistribution Policy**

To avoid disruption of business operations or disturbance of employees, visitors, and others, T&T Industrial, Inc. has implemented a Nonsolicitation/Nondistribution Policy. For purposes of this policy, "solicitation" includes, but is not limited to, selling items or services, requesting contributions, and soliciting or seeking to obtain membership in or support for any organization. Solicitation performed through verbal, written, or electronic means is covered by the Nonsolicitation/Nondistribution Policy.

You are prohibited from soliciting other employees during your assigned working time. For this purpose, working time means time during which either you or the employees who are the object of the solicitation are expected to be actively engaged with assigned work. You may conduct solicitations during your lunch period, coffee breaks, or other authorized nonworking time, so long as you do so when the other employees are also on nonworking time.

To avoid inappropriate litter, clutter, and safety risks, you may not distribute literature or other items that are not work related in working areas at any time. Working areas do not include break/rest areas, lunchrooms, or parking lots. Electronic distribution of materials is prohibited during work time. Literature that violates T&T's equal employment opportunity (EEO) and no harassment policies (including threats of violence), or is knowingly and recklessly false, is never permitted. Non-employees are not permitted to distribute materials on company premises at any time.

This policy is not intended to restrict the statutory rights of employees, including the right to discuss terms and conditions of employment.

Violations of this policy should be reported to your Manager/Foreman.

## **4.6 Employer Sponsored Social Events**

T&T Industrial, Inc. holds periodic social events for employees. Be advised that your attendance at these events is voluntary and does not constitute part of your work-related duties. Any exceptions to this policy must be in writing and signed by a Manager/Foreman prior to the event.

Alcoholic beverages may be available at these events. If you choose to drink alcoholic beverages, you must do so in a responsible manner. Do not drink and drive. Instead, please call a taxi, Uber, or other ride service or appoint a designated driver.

## **4.7 Bulletin Boards**

T&T Industrial, Inc. maintains an official bulletin board located at the shop entrance to the building to provide employees with official Company notices, including wage and hour laws, changes in policies, and other employment-related notices. At times, T&T may also post information of general interest to employees on the bulletin board. You are responsible for being informed about this material by periodically reviewing the bulletin board. Only authorized personnel may add and remove notices from the bulletin board.

## **4.8 Access to Personnel and Medical Records Files**

T&T Industrial, Inc. maintains separate medical records and personnel files for all employees. Files containing medical records are stored separately and apart from any business-related records in a safe, locked, inaccessible location. The medical file is the repository for sensitive and confidential information related to an individual's health, health benefits, health-related leave and/or accommodations, and benefits selections and coverage. Medical records are kept confidential in compliance with applicable laws and access is on a "need-to-know" basis only.

Supervisors and others in management may have access to your personnel file for possible employment-related decisions. If you wish to review your personnel or medical records file, you must give T&T reasonable notice. Inspection must occur in the presence of a Company representative.

All requests by an outside party for information contained in your personnel file will be directed to the HR Department, which is the only department authorized to provide such information.

## **4.9 Third Party Disclosures**

From time to time, T&T Industrial, Inc. may become involved in news stories or potential or actual legal proceedings of various kinds. When that happens, lawyers, former employees, newspapers, law enforcement agencies, and other outside persons may contact our employees to obtain information about the incident or the actual or potential lawsuit.

If you receive such a contact, you should not speak on behalf of T&T and should refer any call requesting the position of T&T to the COO. If you have any questions about this policy or are not certain what to do when such contact is made, contact the COO.

## **5.0 Wage and Hour Policies**

### **5.1 Introduction to Wage and Hour Policies**

At T&T Industrial, Inc., pay depends on a wide range of factors, including pay scale surveys, individual effort, profits, and market forces. If you have any questions about your compensation, including matters such as paid time off, commissions, overtime, benefits, or paycheck deductions, speak with your Manager/Foreman.

### **5.2 Recording Time**

T&T Industrial, Inc. is required by applicable federal, state, and local laws to keep accurate records of hours worked by certain employees. To ensure that T&T has complete and accurate time records and that employees are paid for all hours worked, nonexempt employees are required to record all working time on their time sheet. Exempt employees may also be required to track days or time worked. Speak with your Manager/Foreman for specific instructions.

You must accurately record all of your time to ensure you are paid for all hours worked and must follow established Company procedures for recording your hours worked.

If you are required to clock in, you should clock in no more than five minutes ahead of your start time and clock out no later than five minutes after your quitting time. Either of these could result in docked pay or disciplinary action.

Notify your Manager/Foreman of any pay discrepancies whether over or under, unrecorded or mis-recorded work hours, or any involuntarily missed meal or break periods.

Falsifying time entries is strictly prohibited. Falsifying time entries includes working "off the clock." If you falsify your own time records, or the time records of co-workers, or if you work off the clock, you will be subject to discipline up to and including termination. Immediately report to Human Resources Manager any employee, supervisor, or manager who falsifies your time entries or encourages or requires you to falsify your time entries or work off the clock.

### **5.3 Direct Deposit**

T&T Industrial, Inc. requires that all employees enroll in direct deposit, and you will be asked to complete a direct deposit form with your new hire paperwork.

A written explanation of your deductions will be given to you on paydays described in the preceding sections in lieu of a check.

## **5.4 Paycheck Deductions**

T&T Industrial, Inc. is required by law to make certain deductions from your pay each pay period, including deductions for state and federal income tax, Social Security and Medicare (FICA) taxes, and associated Union required deduction, and any other deductions required under law or by court order for wage garnishments. The amount of your tax deductions will depend on your earnings and the information you list on your federal Form W-4 and applicable state withholding form. Permissible deductions for exempt employees may also include, but are not limited to, deductions for full-day absences for reasons other than sickness or disability and certain disciplinary suspensions. You may also authorize certain voluntary deductions from your paycheck where permissible under state law. Your deductions will be reflected in your wage statement. If you have any questions about deductions from your pay, contact your Manager/Foreman.

T&T will not make deductions to your pay that are prohibited by federal, state, or local law. Review your paycheck for errors each pay period and immediately report any discrepancies to your Manager/Foreman.

You will be reimbursed in full for any isolated, inadvertent, or improper deductions, as defined by law. If an error is found, you will receive an immediate adjustment, which will be paid no later than your next regular payday.

T&T will not retaliate against employees who report erroneous deductions in accordance with this policy.

## **5.5 Pay Period**

At T&T Industrial, Inc., the standard pay period is weekly for all employees. The pay date is Friday. Special provisions may be required from time to time if holidays fall on pay dates. Check with your Manager/Foreman if this type of date arises.

If you are paid by commission, refer to your commission agreement.

Review your paycheck for accuracy. If you find an issue, report it to your Manager/Foreman immediately.

## **5.6 Overtime**

If you are nonexempt, you may qualify for overtime pay. All overtime must be approved in advance, in writing, by your Manager/Foreman.

At certain times T&T Industrial, Inc. may require you to work overtime. We will attempt to give as much notice as possible in this instance. However, advance notice may not always be possible. Failure to work overtime when requested or unauthorized overtime may result in discipline, up to and including discharge.

Unless otherwise required or exempted by law, overtime pay of one and one-half times your regular rate of pay is paid for any hours worked more than 40 hours in a workweek. Holidays, vacation days, and sick leave days do not count as time worked for computing overtime.

## **5.7 Job Abandonment**

If you fail to show up for work or fail to call in with an acceptable reason for the absence for a period of three consecutive days, you will be considered to have abandoned your job and voluntarily resigned from T&T Industrial, Inc.

## **5.8 Meal and Rest Periods**

T&T Industrial, Inc. strives to provide a safe and healthy work environment and complies with all federal and state regulations regarding meal and rest periods. Check with your Manager/Foreman regarding procedures and schedules for rest and meal breaks. T&T requests that employees accurately observe and

record meals and rest periods. If you know in advance that you may not be able to take your scheduled break or meal period, let your Manager/Foreman know; in addition, notify your Manager/Foreman as soon as possible if you were unable to or prohibited from taking a meal or rest period.

## **5.9 Accommodations for Nursing Mothers**

T&T Industrial, Inc. will provide nursing mothers reasonable unpaid break time to express milk for their infant child(ren) for up to one year following the child's birth.

If you are nursing, T&T will make reasonable efforts to provide you with a private, secure, and sanitary room, other than a restroom, near the work area to express milk or to breastfeed a nursing child. The room will be clearly designated and either have a lock or a sign on the door to indicate when the room is in use.

Expressed milk can be stored in company refrigerators, refrigerators provided in the lactation room or other location, in a personal cooler. Sufficiently mark or label your milk to avoid confusion for other employees who may share the refrigerator.

The break time must, if possible, run concurrently with any break time already provided. You are encouraged to discuss the length and frequency of these breaks with your Manager/Foreman.

## **6.0 Employee Benefits**

### **6.1 Health, Dental, and Vision Insurance**

Our health insurance plans are offered in two tiers, to support the various needs of our organization.

#### **Tier 1: Non-Union Employees (General Class)**

Eligibility:

- Applies to all non-union employees of T&T Industrial.
- First of the month following a 60-day waiting period for eligibility.

Coverage:

- Health, Dental, and Vision insurance plans are available under this tier.

Cost Sharing:

- T&T Contribution: T&T Industrial will contribute \$600 per month to help offset the employees' premium cost. •
- Employee Contribution: The employee is responsible for covering the remaining difference between the insurance premium and T&T's contribution of \$600. (Example: If the total monthly premium is \$1,200, the employee would pay \$600 out-of-pocket after T&T's \$600 contribution.)

#### **Tier 2: Senior, Director, & Executive Class**

Eligibility

- Only available to employees who hold a Senior, Director, or Executive role within the company.
- Must meet the job role criteria at the time of enrollment.
- First of the month following a 60-day waiting period for eligibility.

Coverage

- Health, Dental, and Vision insurance plans are available under this tier.

#### Cost Sharing:

- T&T Contribution: T&T Industrial will contribute \$1,100 per month toward the employees' insurance premium, effectively covering a larger portion of the cost. •

#### Employee Contribution:

- The employee will be responsible for covering the remaining difference between the insurance premium and T&T's contribution of \$1,100. (Example: If the total monthly premium is \$1,500, the employee would pay \$400 out-of pocket after T&T's \$1,100 contribution.)

#### Summary of Benefits by Tier:

| <b>Tier Benefit</b>   | <b>Tier 1: Non-Union Employees</b>   | <b>2: Senior, Director &amp; Executive</b> |
|-----------------------|--------------------------------------|--------------------------------------------|
| Eligibility           | Non-union employees (90-day wait)    | Senior, Director, Executive roles only     |
| T&T Contribution      | \$600/month                          | \$1,100/month                              |
| Employee Contribution | Difference between premium and \$600 | Difference between premium and \$1,100     |
| Plans Offered         | Health, Dental, Vision               | Health, Dental, Vision                     |
| Cost Sharing          | Employee covers remaining cost       | Employee covers remaining cost             |

#### Important Notes:

- Waiting Period: Employees in Tier 1 will have been the First of the month following a 60- day waiting period for eligibility.
- Premium Adjustments: The premium amounts and employee contributions are subject to change based on the insurance provider's rates or plan updates. T&T Industrial will provide advance notice of any changes to the contribution amounts.
- Enrollment: Employees in both tiers will need to enroll in the health insurance plans within the designated enrollment periods and are encouraged to review available plan options to select the one that best fits their needs.

## 6.2 COBRA

The Consolidated Omnibus Budget Reconciliation Act (COBRA) provides the opportunity for eligible T&T Industrial, Inc. employees and their beneficiaries to continue health insurance coverage under T&T health plan when a "qualifying event" could result in the loss of eligibility. Qualifying events include resignation, termination of employment, death of an employee, reduction in hours, a leave of absence, divorce or legal separation, entitlement to Medicare, or where a dependent child no longer meets eligibility requirements.

Contact Human Resources/Union benefits to learn more about your COBRA rights.

## 6.3 Retirement Plan

After one year of employment, eligible employees can contribute to our retirement plan, with a 100% company match on the first 4% of your salary. This plan offers various investment options and professional guidance to support your financial future.

**Eligibility:** T&T Industrials' 401(k) retirement plan is available to all eligible, full-time, nonunion employees who are at least 21 years of age, have completed 1,000 service hours, and have 12 months of service as a full-time employee.

**Contributions:** Eligible employees can make before tax 401(k) or after-tax Roth 401(k) contributions between 1% and 100% of their compensation, up to the annual maximum allowed by law (\$23,000 in 2024). T&T Industrial will match 100% of the first 4% of your contributions.

**Enrollment:** Once you become eligible, you will receive an enrollment form to choose your contribution amount and investment options, or to opt out of the plan. If you do not complete and return the form, you will be automatically enrolled with a minimum 3% of compensation contribution, invested in the plan default option. Minimum contributions for automatic enrollment (no opt-out election made by the employee), will increase annually so that, by 2028, the automatic employee contribution is at least 6% of compensation. If you prefer not to participate, you can opt out by submitting the opt-out form that will be provided.

## **6.4 Tuition Reimbursement**

This program provides financial assistance for approved educational courses that enhance your skills and contribute to your career advancement within our company. Eligible expenses, including tuition and required materials, will be reimbursed up to \$2,500 per year, subject to the program's guidelines. We encourage you to take advantage of this opportunity to further your education and support your ongoing success with us.

## **6.5 Leadership Development**

This program is designed to cultivate and enhance leadership skills among our employees who demonstrate strong potential and a commitment to growth. As part of this program, you will engage in a series of workshops, mentorship sessions, and hands-on projects aimed at preparing you for future leadership roles within our organization.

## **6.6 Life Insurance**

We provide a \$25,000 life insurance policy as a base benefit, giving you peace of mind with essential financial protection. You also have the option to enhance this coverage by adding additional insurance for yourself and dependents, ensuring your family is cared for should the unexpected occur.

## **6.7 Short-Term Disability**

This benefit offers financial support if you are temporarily unable to work due to illness or injury. It provides partial income replacement during your recovery period, allowing you to focus on your health without the stress of lost wages.

## **6.8 Critical Illness Coverage**

Our critical care illness coverage supports you in the event of a serious health condition requiring specialized, intensive treatment. This benefit helps cover costs associated with critical illnesses, providing additional financial security and peace of mind during challenging times.



## 6.9 Accidental Coverage

Our accident benefits are designed to help with out-of-pocket and household expenses should you or a covered family member get injured in an accident. The policy offers coverage for things like emergency room visits, dislocations, fractures, and burns. The benefits can be used to offset medical deductibles and other expenses when an injury occurs.

## 6.10 Workers' Compensation Insurance Policy

Workers' compensation is a no-fault system designed to provide benefits to all employees for work-related injuries. Workers' compensation insurance coverage is paid for by employers and governed by state law. The workers' compensation system provides coverage of medical treatment and expenses, occupational disability leave, and rehabilitation services, as well as payment for lost wages due to work-related injuries. If you are injured on the job while working at T&T Industrial, Inc., no matter how slightly, you are to report the incident immediately to your Manager/Foreman. Consistent with applicable state law, failure to report an injury within a reasonable period of time could jeopardize your claim for benefits.

To receive workers' compensation benefits, notify your Manager/Foreman immediately of your claim. If your injury is the result of an on-the-job accident, you must fill out an accident report. You will be required to submit a medical release before you return to work.

## 6.11 Unemployment Compensation Insurance Policy

Unemployment compensation insurance is paid for by T&T Industrial, Inc. and provides temporary income for employees who have lost their job under certain circumstances. Your eligibility for unemployment compensation will, in part, be determined by the reasons for your separation from T&T.

## 6.12 Paid Time Off (PTO)

### Paid Time Off (PTO)

We work hard but also believe that taking time off from work is essential, both personally and professionally.

The purpose of Paid Time Off (PTO) is to provide employees with flexible paid time off from work that can be used for such needs as vacation, personal, sick days, family illness, doctor appointments, school, volunteerism, jury duty, bereavement and other activities of the employee's choice. PTO **does not cover** extended absences such as **parental leave, medical leave, bereavement, jury duty, or any other form of long-term leave**. These types of leave may be covered under separate company policies or applicable laws. PTO is available to non-union employees\* T&T's goal is to reduce unscheduled absences and the need for supervisory oversight.

To meet the varying needs of our workforce, we offer different PTO policies for exempt and non-exempt employees.

*\*Some exceptions may apply. See PTO and Paid Holidays for additional information about exemptions to this policy.*

### 1. PTO for Salaried Employees (Flexible PTO)

Salaried employees are eligible for a flexible PTO policy that allows flexibility in taking time off, subject to the following guidelines:

Purpose: Flexible PTO covers vacation, personal time, and short-term illnesses.

Approval Process: Employees must request time off in advance and receive manager's approval to ensure proper coverage and minimal disruption to team operations.

Accountability: Employees are responsible for managing their workload and ensuring deadlines and team commitments are met.

No Accrual or Payout: Flexible PTO does not accrue, and unused time will not be paid out upon termination.

Encouragement to Take Time Off: To support employee well-being, managers are encouraged to discuss PTO regularly and ensure team members are taking adequate breaks.

## **2. PTO for Non-Exempt and Part-Time Employees (Accrued PTO)**

Non-exempt (hourly) and part-time employees are eligible for an accrued PTO policy based on hours worked.

### **Exception to PTO Accrual Policy for Certain Union Employees**

While union employees are generally not eligible for participation in the company benefits including PTO accrual, an exception is made for a specific subset of union workers. **Hourly union employees who are assigned the position of Service Technician within the Service Department and who participate in the on-call rotation are eligible for Accrued PTO.**

This exemption is granted in recognition of the unique scheduling demands and operational responsibilities associated with on-call service coverage. All other union classifications remain ineligible for PTO.

### **Accrual**

PTO will start accruing as of the first day of employment. Eligible employees who work at least 40 hours per week with **NO** unexcused tardy or absence's will accrue PTO weekly in increments based on their length of services as defined below. Employees working less than 40 hours per week, temporary employees, contract employees and interns are not eligible for PTO. PTO is added to the employee's PTO bank when the weekly check is issued. You will not earn PTO in pay periods during which unpaid leave, short or long-term disability leave, or workers' compensation leave is taken or during the above-mentioned tardy or unexcused absences.

- Beginning with the first day of employment, the employee will accrue 2.307 hours of PTO per pay period of full-time employment, which gives the employee 15 days of PTO for the year. **These hours are usable as they accrue.**
- In the 4th year of full-time employment, the employee will accrue 3.076 hours of PTO per pay period of full-time employment, which gives the employee 20 days of PTO for the year. These hours are usable as they accrue.

If a holiday falls during an eligible employee's paid time off, they will not be allowed to use a paid day but will receive holiday pay.

Employees will be able to carry over up to 56 hours of accrued paid time off to the following year from the employee anniversary date.

### **Availability**

You can use your PTO accruals in the pay period following completion of 90 days of employment. All hours

you accrue after that time can be used in the pay period following the period they are accrued in.

T&T Industrial appreciates as much notice as possible when you know you expect to miss work for a scheduled absence. To take PTO requires at least seven (7) days of notice to the supervisor and Human Resources unless the PTO is used for legitimate, unexpected illness or emergencies. (Use the Paid Time Off form to request PTO.) If you are requesting 5 or more days off in a row, please provide at least fourteen (14) days' notice to the supervisor and Human Resources. In all instances, PTO must be approved by the employee's supervisor in advance. All PTO requests are subject to your supervisor's approval as well as team or department staffing needs. We understand that unscheduled absences occasionally happen; however, when possible, PTO should be scheduled in advance. If the frequency of unscheduled absences becomes excessive, corrective actions will be taken, up to and including termination. You must use your PTO hours according to your normal workday. For example, if you work an eight-hour day and need to take off a full day, you must request eight hours of PTO. PTO is paid at your regular pay rate and is not subject to overtime.

It is standard practice at T&T Industrial to not allow you to borrow against your PTO bank, therefore advances on paid leave is not allowed. Employees will not be paid wages in lieu of unused PTO. All accrued PTO not taken at the time an employee leaves employment will be forfeited upon departure, unless required by state law. Employees who give 2 weeks' notice must work the 2 weeks without utilizing PTO.

### **6.13 Holidays**

T&T Industrial will grant holiday time off to all eligible, full-time non-union employees for the dates listed below.

#### **Exception to Holidays Policy for Certain Union Employees**

While union employees are generally not eligible for participation in the company's benefits including Holidays, an exception is made for a specific subset of union workers. **Hourly union employees who are assigned the position of Service Technician within the Service Department and who participate in the on-call rotation are eligible for Holidays.**

This exemption is granted in recognition of the unique scheduling demands and operational responsibilities associated with on-call service coverage. All other union classifications remain ineligible for Holidays.

**Memorial Day:** (Last Monday in May) office will be closed and eligible employees will receive holiday pay.

**Independence Day:** (July 4th) if it falls during the work week (Monday-Friday) then the office will be closed, and eligible employees will receive holiday pay. If it falls on a Saturday, office will be closed on Friday or if it falls on a Sunday, office will be closed on Monday and eligible employees will receive holiday pay.

**Labor Day:** (First Monday in September) the office will be closed, and eligible employees will receive holiday pay.

**Thanksgiving:** (Fourth Thursday in November) office will be closed and eligible employees will receive holiday pay. Office will also be closed the Friday after Thanksgiving, but employees will need to use a vacation day or no pay for that day.

**Christmas:** Office will be closed, and eligible employees will receive holiday pay.

- If Christmas falls on a Saturday, the office will be closed on Christmas Eve and eligible employees will receive holiday pay.
- If Christmas falls on a Sunday, the office will be closed on Monday and eligible employees will receive holiday pay.
- If Christmas falls on a Monday, the office will be closed that day only and eligible employees will receive holiday pay.
- If Christmas falls on a Tuesday, the office will be closed on Christmas Eve, but employees will need to use a vacation day or no pay. Eligible employees will receive holiday pay for Christmas Day.

- If Christmas falls on a Wednesday, the office will be open on Christmas Eve until 12:00pm. Employees will need to use vacation time or no pay for the last half of day. Eligible employees will receive holiday pay for Christmas Day.
- If Christmas falls on a Thursday, the office will be open on Christmas Eve. Eligible employees will receive holiday pay for Christmas Day. Office will be closed on Friday. Employees will need to use vacation time or no pay for that day.
- If Christmas falls on a Friday, the office will be open on Christmas Eve until 12:00pm. Employees will need to use vacation time or no pay for last half of day. Eligible employees will receive holiday pay for Christmas Day.

**New Year's Day:** Office will be closed, and eligible employees will receive holiday pay.

- If New Year's falls on a Saturday, office will be closed on New Year's Eve and eligible employees will receive holiday pay.
- If New Year's falls on a Sunday, office will be closed on Monday and eligible employees will receive holiday pay.
- If New Year's falls on a Monday, the office will be closed that day only and eligible employees will receive holiday pay.
- If New Year's falls on a Tuesday, the office will be open New Year's Eve. Eligible employees will receive holiday pay for New Year's Day.
- If New Year's falls on a Wednesday, the office will be open on New Year's Eve. Eligible employees will receive holiday pay for New Year's Day.
- If New Year's falls on a Thursday, the office will be open on New Year's Eve. Eligible employees will receive holiday pay for New Year's Day.
- If New Year's falls on a Friday, the office will be open New Year's Eve. Eligible employees will receive holiday pay for New Year's Day.
- Paid time off for holidays will not be counted as hours worked for the purpose of determining overtime. Double time will be awarded to hourly employees working on Holidays.

## **6.14 Sick Pay**

Please refer to PTO.

## **6.15 Vacation Policy**

Please see PTO.

## **6.16 Bereavement Leave**

T&T Industrial, Inc. understands that the loss of a loved one is a difficult time, and we are committed to supporting our employees during periods of grief. Bereavement leave provides paid time off to allow employees to manage personal affairs, attend funeral services, and take time to grieve. Employees may take up to 5 paid days of bereavement leave in the event of the death of a family member or close friend. If additional time is needed beyond the standard bereavement leave, employees may request PTO.

## **6.18 Voting Leave**

If you are a registered voter and have less than three hours outside of your working hours to vote while the polls are open, T&T Industrial, Inc. will provide you with two hours off, without loss of pay, to vote during your work hours on the day of election or a day in which in-person absentee voting is allowed. Additional time will be provided, as needed, if your distance to the voting location requires more time.

You must provide oral or written notice of the need for time off to vote at least three days prior to the election or the day of in-person absentee voting so that time off can be scheduled to minimize disruption to normal work schedules.

You must submit proof of voting to your Manager/Foreman upon return to work in order to be paid for the missed work time. T&T may specify the hours during which you may be absent.

## **6.19 Jury Duty Leave**

T&T Industrial, Inc. encourages employees to fulfill their civic duties related to jury duty. If you are summoned for jury duty, notify your Manager/Foreman as soon as possible to make scheduling arrangements.

If you are classified as exempt, you will not incur any deduction in pay for absence due to jury duty. If you are classified as nonexempt, you will not be compensated for time spent on jury duty. You may opt to use PTO in place of unpaid leave.

T&T reserves the right to require employees to provide proof of jury duty service to the extent authorized by law.

T&T will not retaliate against employees who request or take leave in accordance with this policy.

## **6.20 Military Leave (USERRA)**

T&T Industrial, Inc. complies with applicable federal and state law regarding military leave and re-employment rights. Unpaid military leave of absence will be granted to members of the uniformed services in accordance with the Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA; with amendments) and all applicable state law. You must submit documentation of the need for leave to Human Resources or appropriate department. When returning from military leave of absence, you will be reinstated to your previous position or a similar position, in accordance with state and federal law. You must notify your Manager/Foreman of your intent to return to employment based on requirements of the law. For more information regarding status, compensation, benefits, and reinstatement upon return from military leave, contact Human Resources or appropriate department.

## **6.21 Personal Leave of Absence**

T&T Industrial, Inc. recognizes that you may need time off from work in special circumstances that other leave policies may not address. In such cases, you may request a personal leave of absence.

### **Eligibility**

All regular/full-time/part-time employees employed for at least 90 days are eligible to apply for an unpaid personal leave of absence.

### **Requesting Leave**

Requests for unpaid personal leave must be submitted to your Manager/Foreman and/or appropriate department in writing at least 7 days in advance where practical. In emergency situations, written notice must be provided as soon as possible. The request should include the reason for the leave as well as the dates you expect to begin and end the leave.

Job performance, absenteeism, and departmental requirements will be taken into consideration before a request is approved. Requests for unpaid personal leave may be denied or granted for any reason and are within the sole discretion of T&T.

You will be required to use all available paid leave balances prior to taking an unpaid personal leave of absence or you may substitute any applicable and available paid leave for all or a portion of your unpaid personal leave.

PTO, seniority, or other benefits will not accrue during an unpaid personal leave of absence. Holidays that occur during an unpaid personal leave of absence will not be paid.

If you are granted a personal leave of absence, reinstatement to your position or any position is not guaranteed.

For union employees, please refer to your Union handbook in reference to leave benefits.

### Extension of Leave

You are required to return from unpaid personal leave on the originally scheduled return date. If you are unable to return, you must request an extension of the leave in writing at least 7 days in advance of the return date. Leave extensions will be considered on a case-by-case basis. If T&T denies the extension request, you must return to work on the originally scheduled return date or be considered to have voluntarily resigned from your employment.

### Return to Work

In advance of your scheduled return date, your MANAGER-SUPERVISOR or appropriate department will arrange for you to resume your previous position, if available. However, T&T's need to fill a position may override the ability to hold a position open until your return. Therefore, we cannot assure our ability to reinstate you to any position after your leave. T&T retains the discretion to determine the similarity of any available positions and your qualifications. If we are unable to reinstate you or you refuse the offer of reinstatement to a different position, your leave status will be changed to a voluntary termination.

### Failure to Return from Leave

If you fail to return to work after an unpaid leave of absence, you will be considered to have resigned your employment.

### Alternative Employment

While on an unpaid leave of absence, you may not work or be gainfully employed either for yourself or others unless express, written permission to perform such outside work has been granted by T&T. If you are on a leave of absence and are found to be working elsewhere without permission, you will be subject to disciplinary action up to and including termination.

### Types of Unpaid Leave

- Unpaid Medical Leave - An eligible employee who is unable to work as a result of personal illness or injury after regular paid sick leave has been exhausted or who is anticipated to require more than five (5) days for recovery, whether or not paid sick leave is exhausted, may request an unpaid medical leave. Employees to whom an unpaid medical leave is granted are required to return to work as soon as they are medically able to do so. T&T Industrial, Inc. may require medical documentation of the employee's ability to return to work at the end of the leave.

## **6.22 Family and Medical Leave Act (FMLA)**

It is the policy of T&T Industrial, Inc. to provide family and medical leave in accordance with the federal Family and Medical Leave Act (FMLA) and state law.

If an Employee is not eligible for FMLA leave, uses up their FMLA leave, or wishes to take leave for a purpose that does not qualify for FMLA, the Employee should consult the organization's other leave policies to determine if other leave might be available.

T&T Industrial, Inc. uses a calendar year to determine the 12-month period during which the FMLA leave is available for reasons that qualify for up to 12 workweeks of leave.

### Eligibility

To be eligible for FMLA leave, an Employee must have worked at least 12 months for the organization, been employed for at least 1,250 hours during the 12 months preceding the commencement of leave and must be employed at a worksite where at least 50 Employees are employed within 75 miles of the worksite.

### *Types of Absences Covered*

Under the FMLA, eligible Employees may take up to 12 weeks of unpaid leave in the designated 12-month period for any of the following:

- For incapacity due to pregnancy, prenatal medical care, or child birth;
- To care for the Employee's child after birth, or placement for adoption or foster care;
- To care for the Employee's spouse, domestic partner, child, or parent, who has a serious health condition;
- For a serious health condition that makes the Employee unable to perform their job; or
- For a qualifying exigency, as described below.

### *Qualifying Exigency Leave*

Eligible Employees with a spouse, domestic partner, child, or parent on covered active duty (or who has been notified of an impending call or order to active duty) in the Armed Forces may use their 12-week leave entitlement to address certain qualifying exigencies. Covered active duty includes deployment to a foreign country. Qualifying exigencies may include attending certain military events, addressing childcare, addressing certain financial and legal arrangements, attending certain counseling sessions, addressing parental care, and attending post-deployment reintegration briefings.

### *Military Caregiver Leave*

An eligible Employee may take up to 26 weeks of unpaid leave during any single 12-month period (a separate and distinct leave year from the period designated above) to care for the Employee's spouse, domestic partner, child, parent, or next of kin who is a covered military servicemember and incurred a serious injury or illness in the line of military duty, or who experienced the aggravation of an existing or pre-existing condition in the line of active duty. The 12-month period is measured forward from the date leave begins. A covered service member is a current member of the Armed Forces, including a member of the National Guard or Reserves. A serious injury or illness is one that may render the servicemember medically unfit to perform their duties for which the servicemember is undergoing medical treatment, recuperation, or therapy; or is in outpatient status; or is on the temporary disability retired list.

A serious injury or illness for a covered veteran is one that was incurred in the line of duty or existed before active duty and was aggravated, and manifested itself before or after becoming a veteran and is:

- A continuation of such an injury or illness, or a condition for which the veteran received a U.S. Department of Veterans Affairs Service-Related Disability Rating of 50 percent or greater based on the condition requiring leave,
- A condition that substantially impairs the veteran's ability to keep or obtain gainful employment, or
- An injury on the basis of which the veteran has been enrolled in the Department of Veterans Affairs Program of Comprehensive Assistance for Family Caregivers.

For military caregiver leave for veterans, the veteran must have been discharged or released under conditions other than dishonorable during the five-year period before the first date an Employee takes FMLA leave.

An Employee does not need to use their leave entitlement in one block. Leave may be taken intermittently or on a reduced leave schedule when medically necessary. Employees must make reasonable efforts to schedule leave for planned medical treatment so as not to unduly disrupt T&T Industrial, Inc.'s operations.

## *Benefits and Protections*

During FMLA leave, T&T Industrial, Inc. must maintain the Employee's health coverage under any group health plan on the same terms as if the Employee had continued to work. Upon return from FMLA leave, Employees must be restored to their original or equivalent positions with equivalent pay, benefits, and other employment terms. Use of FMLA leave cannot result in the loss of any employment benefit that accrued prior to the start of an Employee's leave.

## *Procedures*

Upon a request for leave, Employees must be informed whether they are eligible under FMLA. If they are, T&T Industrial, Inc. must specify any information required and explain the Employees' rights and responsibilities. If they are not eligible, T&T Industrial, Inc. must provide a reason for the ineligibility. Employees must be informed if leave will be designated as FMLA-protected and the amount of leave counted against the Employee's leave entitlement. If the leave is not FMLA-protected, the Employee must be notified of that fact.

## *When to Request Leave*

Where leave is foreseeable, the Employee should make a request for leave at least 30 days in advance. Foreseeable leave should be scheduled so that it does not unduly disrupt T&T Industrial, Inc. operations.

Where 30 days advance notice of the need for leave is not possible, the Employee must provide notice as soon as practicable and generally must comply with normal call-in procedures.

If the circumstances change such that the amount of leave needed changes, the Employee should provide notice of the change within two business days.

## *Notifications and Certifications*

When requesting leave, Employees must provide sufficient information to permit a determination of whether the leave may qualify for FMLA protection and the anticipated timing and duration of the leave. Employees also must indicate if the requested leave is for a reason for which FMLA leave was previously taken or certified.

An Employee who requests leave will be given a "Notice of Eligibility" and a "Rights and Responsibilities" notice within five business days after indicating the need for leave. These notices explain their eligibility and expectations. Any required certification form may be provided with this notice.

The Employee must return the requested certification within 15 calendar days. A member of the HR team will review the certification and determine whether sufficient information has been provided, or if deficiencies need to be corrected. The Employee must be given seven calendar days to correct any deficiencies.

When a complete and sufficient certification has been returned (or when the Employee has otherwise provided sufficient information to designate the absence as FMLA), T&T Industrial, Inc. will provide the Employee with a "Designation Notice" within five business days of determining whether the leave qualifies for FMLA. If so, the notice will describe the conditions of the leave and the requirements for returning to work.

The organization reserves the right to require a second or even third medical opinion, at the organization's expense. Employees also may be required to provide periodic recertification supporting the need for leave as allowed by law and may be required to report periodically on their status and intent to return to work. The organization may waive the certification requirement at its discretion.

## *Pay During Leave*



Generally, family and medical leave absences are unpaid, but Employees may substitute paid leave (vacation, sick leave, PTO, etc.). The organization reserves the right to require substitution of paid leave during FMLA leave. In order to use paid leave, Employees must comply with normal paid leave policies. Employees may also be eligible for income replacement under a benefit program or other entitlement. This may include short-term disability, workers' compensation, and so on. If an Employee is receiving such benefits during FMLA leave, the Employee cannot be required to substitute organization paid leave (vacation, PTO, etc.). If allowed by the disability plan and where state law permits, the organization and the Employee may agree to have paid leave supplement the disability plan benefits (i.e., where those benefits are less than the Employee's regular wages or salary).

### *Returning to Work*

An Employee will be reinstated to the same job or an equivalent position upon completion of FMLA leave, except where denial of restoration is permitted by the FMLA. If the Employee has exhausted all available leave and is still unable to return to work, the Employee no longer has any job restoration rights under FMLA. Each situation will be reviewed on a case-by-case basis to determine whether the Employee may be eligible for rights and protections under other laws or organization policies.

### *Fitness for Duty*

When leave is for the Employee's own serious health condition, the Employee is expected to return to work when released by a health care provider. The Employee will need to provide a Fitness for Duty certification before returning to work if this requirement was indicated in the Designation Notice. The Fitness for Duty certification must be signed by a health care provider.

If an Employee is released for light duty work and is offered a light duty job but refuses, any short-term disability benefits the Employee may be receiving may cease, depending on the terms of the plan. However, the Employee is still permitted to use their FMLA entitlement.

### *Additional Information*

Termination of employment may occur if an Employee fails to return from leave at the time agreed upon (barring circumstances which required an extension of available leave) or if an Employee is found to have taken leave on a fraudulent basis.

## **7.0 Job Performance**

### **7.1 Performance Improvement**

T&T Industrial, Inc. will make efforts to periodically review your work performance. The performance improvement process will take place annually, or as business needs dictate. You may specifically request that your Manager/Foreman assist you in developing a performance improvement plan at any time.

The performance improvement process is a means for increasing the quality and value of your work performance. Your initiative, effort, attitude, job knowledge, and other factors will be addressed. You must understand that a positive job performance review does not guarantee a pay raise or continued employment. Pay raises and promotions are based on numerous factors, only one of which is job performance.

### **7.2 Pay Raises**

Depending on financial health and other Company factors, efforts will be made to give pay raises consistent with T&T Industrial, Inc. profitability, job performance, and the consumer price index. T&T may also make individual pay raises based on merit or due to a change of job position.

### **7.3 Promotions**

To match you with the job for which you are best suited and to meet the business needs of T&T Industrial, Inc., you may be transferred from your current job. It is our policy to promote from within only when the most qualified candidate is available. Promotions are made on an equal opportunity basis according to employees possessing the needed skills, education, experience, and other qualifications that are required for the job.

All employees promoted into new job positions will undergo an introductory period as described in the New Hires and Introductory Periods policy. Unlike new hires, however, such employees will continue to receive Company benefits for which they are eligible.

### **7.4 Performance Bonus**

Opportunity for this will occur at the end of each year during the Growth and Performance Review. Bonus amount will be determined based upon profitability of projects, length of service, and meeting project milestones throughout the year. This will be established in coordination with the department heads.

### **7.5 Transfers**

T&T Industrial, Inc. may transfer your employment from one position to another with or without notice, as required by production or service needs, or upon request by you and with management approval. Transfers in excess of 90 days may be considered final, and your paycheck may be increased or decreased consistent with the pay scale for your new position.

### **7.6 Disciplinary Process**

Violation of T&T Industrial, Inc. policies or procedures may result in disciplinary action including demotion, transfer, leave without pay, or termination of employment. T&T encourages a system of progressive discipline depending on the type of prohibited conduct. However, T&T is not required to engage in progressive discipline and may discipline or terminate employees who violate the rules of conduct, or where the quality or value of their work fails to meet expectations at any time. Again, any attempt at progressive discipline does not imply that your employment is anything other than on an "at-will" basis.

In appropriate circumstances, management will first provide you with a verbal warning, then with one or more written warnings, and if the conduct is not sufficiently altered, eventual demotion, transfer, forced leave, or termination of employment. Your Manager/Foreman will make every effort possible to allow you to respond to any disciplinary action taken. Understand that while T&T is concerned with consistent enforcement of our policies, we are not obligated to follow any disciplinary or grievance procedure and that depending on the circumstances, you may be disciplined or terminated without any prior warning or procedure.

### **7.7 Criminal Activity/Arrests**

T&T Industrial, Inc. will report all criminal activity in accordance with applicable law. Involvement in criminal activity while employed by T&T, whether on or off Company property, may result in disciplinary action including suspension or termination of employment.

You are expected to be on the job, ready to work, when scheduled. Inability to report to work as scheduled may lead to disciplinary action, up to and including termination of employment, for violation of an attendance policy or job abandonment.

## 7.8 Workforce Reductions (Layoffs)

If necessary, based upon business needs, T&T Industrial, Inc. management may decide to implement a reduction in force (RIF). We acknowledge that RIFs can be a trying experience for all involved, and T&T will make its best effort to make sound business decisions while acknowledging the needs of its workforce.

A reduction in force (RIF) occurs when changing priorities, budgetary constraints or other business conditions require T&T Industrial, Inc. to eliminate positions.

### Selection for RIF

A RIF decision requires an evaluation of the need for particular positions and the relative value of work performed by specific employees so that T&T Industrial, Inc. can continue to provide the highest level of service possible with a reduced workforce. Determining the retention or separation of an employee includes an evaluation of the relative skills, knowledge and productivity of the employee in comparison to necessary services. Length of service and other factors are also considered but receive less weight in the determination. T&T Industrial, Inc. determines priority for RIF within the following guidelines:

- Temporary employees performing the same work must be terminated before any regular employee, provided that a regular employee can perform the temporary employee's tasks.
- Reduction in force of regular employees is based on the following factors:
  - Which positions are most critical to the department in the delivery of goods or services.
  - Relative skills, knowledge and productivity of employees.
  - Length of service of employees.
  - Consideration of equal employment factors

### Severance Pay

Severance pay is available for eligible employees in accordance with T&T Industrial, Inc.'s RIF determination process.

### Severance Pay Calculation

The amount of an eligible employee's severance payment is based on length of service and salary at separation. Payment is made in the same number of months as the number of months of pay. Payment is discontinued once re-employment is obtained.

#### Years of Service

Less than 1 year

1 but less than 5 years

5 but less than 10 years

10 but less than 20 years

20 or more years

#### Payment

2 weeks' base salary paid during the month following separation

4 weeks' base salary paid during the month following separation

8 weeks' base salary paid during the 2 months following separation

12 weeks' base salary paid during the 3 months following separation

16 weeks' base salary paid during the 4 months following separation

### Deductions from severance pay

The following deductions must be withheld from severance payments.

#### Deduction

Federal withholding

Garnishments, support orders, levies

Negative leave balances, where allowable

#### Amount

Based on an employee's current withholding status on W-4

All based on directive provided

Based on leave balances

The following deductions will not be withheld from severance payments:

- State income withholding tax (if permitted by the employee's state).
- Medical insurance, including health, dental and vision.
- 401(k) and deferred compensation.
- 401(k) loan payments.
- Life insurance.

### **Direct deposit**

Severance payments, as well as any leave payout due, will continue to be directly deposited into the bank account currently set up. To change to a different account, contact the payroll office.

### **Other RIF Benefits**

#### **Unemployment insurance**

Employees separated due to RIF are eligible to collect unemployment insurance provided they meet the normal eligibility requirements. Contact the local unemployment office to file a claim for unemployment compensation.

## **8.0 Conflicts of Interest**

### **8.1 Conflicts of Interest**

T&T Industrial, Inc. is concerned with conflicts of interest that create actual or potential job-related concerns, especially in the areas of confidentiality, customer relations, safety, security, and morale. If there is any actual or potential conflict of interest between you and a competitor, supplier, distributor, or contractor to T&T, you must disclose it to your Manager/Foreman. If an actual or potential conflict of interest is determined to exist, T&T will take such steps as it deems necessary to reduce or eliminate this conflict.

An actual or potential conflict of interest occurs when an employee is in a position to influence a decision that may result in a personal gain for that employee or for a relative as a result of T&T Industrial, Inc.'s business dealings. For the purposes of this policy, a relative is any person who is related by blood or marriage, or whose relationship with the employee is similar to that of persons who are related by blood or marriage.

No "presumption of guilt" is created by the mere existence of a relationship with outside firms. However, if employees have any influence on transactions involving purchases, contracts, or leases, it is imperative that they disclose to their Manager/Foreman as soon as possible the existence of any actual or potential conflict of interest so that safeguards can be established to protect all parties.

Personal gain may result not only in cases where an employee or relative has a significant ownership in a firm with which T&T Industrial, Inc. does business, but also when an employee or relative receives any kickback, bribe, substantial gift, or special consideration as a result of any transaction or business dealings involving T&T Industrial, Inc.

### **8.2 Outside Employment**

Outside employment that creates a conflict of interest or that affects the quality or value of your work performance or availability at T&T Industrial, Inc. is prohibited. T&T recognizes that you may seek additional employment during off hours, but in all cases expects that any outside employment will not affect your attendance, job performance, productivity, work hours, or scheduling, or would otherwise adversely affect your ability to effectively perform your duties or in any way create a conflict of interest. Any outside

employment that will conflict with your duties and obligations to T&T should be reported to your Manager/Foreman. Failure to adhere to this policy may result in discipline up to and including termination.

### **8.3 Employment of Relatives and Friends**

The employment of relatives in the same area of an organization may cause serious conflicts and problems with favoritism and employee morale. In addition to claims of partiality in treatment at work, personal conflicts from outside the work environment can be carried over into day-to-day working relationships. For purposes of this policy, a relative is any person who is related by blood or marriage, or whose relationship with the employee is similar to that of persons who are related by blood or marriage. Relatives of current employees may not occupy a position that will be working directly for or supervising their relative.

Although T&T Industrial, Inc. has no prohibition against employing relatives of current employees, we are committed to monitoring situations in which such relationships exist in the same area. In other cases where a conflict or the potential for conflict arises because of the relationship between employees, even if there is no line of authority or reporting involved, the employees may be separated by reassignment or, if necessary, terminated from employment.

We will not employ friends or relatives in circumstances where actual or potential conflicts may arise that could compromise supervision, safety, confidentiality, security, and morale at T&T Industrial, Inc. It is your obligation to inform T&T of any such potential conflict under this policy or under Policy 8.0, so T&T can determine how best to respond to the particular situation.

## **9.0 Customer Relations**

### **9.1 Customer, Client, and Visitor Relations**

T&T Industrial, Inc. strives to provide the best products and services possible to our customers and clients. Our customers and clients support this business and generate your wages. You are expected to treat every customer, client, or visitor with the utmost respect and courtesy during your working time. You should never argue or act in a disrespectful manner towards a visitor or customer during your working time. If you are having problems with a customer, client, or visitor, notify your Manager/Foreman immediately. If a customer, client, or visitor voices a suggestion, complaint, or concern regarding our products or services, inform your Manager/Foreman or a member of management. Lastly, make every effort to be prompt in following up on customer, client, or visitor orders or questions. Positive customer, client, and visitor relations will go a long way to establishing our Company as a leader in its field.

### **9.2 Products and Services Knowledge**

As a representative of T&T Industrial, Inc., you are expected to be familiar with the products and services we offer. Take every opportunity to learn the interrelationship between your department or division and the others of T&T. We consider our employees to be the best reflection of our business brand and company success.

## **10.0 Trade Secrets and Inventions**

### **10.1 Confidentiality and Nondisclosure of Trade Secrets**

As a condition of employment, T&T Industrial, Inc. employees are required to protect the confidentiality of Company trade secrets, proprietary information, and confidential commercially-sensitive information (i.e. financial or sales records/reports, marketing or business strategies/plans, product development, customer lists, patents, trademarks, etc.) related to T&T. Access to this information should be limited to a "need to know" basis and should not be used for personal benefit, disclosed, or released without prior authorization

from management.

If you have information that leads you to suspect that employees are sharing such information in violation of this policy and/or competitors are obtaining such information, you are required to inform your Manager/Foreman, Human Resources or appropriate department.

Violation of this policy may result in disciplinary action up to and including termination, and may subject the violator to civil liability.

## **10.2 Inventions**

Any invention created, in whole or in part, during your work hours, or from the use of equipment or facilities belonging to T&T Industrial, Inc., is a "work for hire" and is the property of T&T.

If you intend to develop and maintain property rights to any invention that relates in any way to products or services of T&T, you are required to obtain a written waiver of this policy, signed by both you and both owners.

## **11.0 Finance Policies**

### **11.1 Business Expenses Policy**

The purpose of this policy is to define approved non-travel business expenses and the authority for incurring and approving such expenses at T&T Industrial, Inc..

Approved business expenses are the reasonable and necessary expenses incurred by employees to achieve legitimate business purposes that are not covered by normal Company procurement processes.

#### Approval

If you need to incur a necessary expense for items over \$25 you will need approval from your Supervisor/Manager and the Office manager. The Office manager will determine the appropriate way to procure the items needed.

#### Reporting

Report approved expenses on the expense report form and include a description of the expense, its business purpose, date, place, and the participants.

### **11.2 Travel Expenses**

The purpose of this policy is to define approved business travel expenses and the authority for incurring and approving such expenses at T&T Industrial, Inc..

Travel expenses are the reasonable and necessary expenses incurred by employees when traveling on approved T&T Industrial, Inc. work trips. Travel is limited to work activities for which other means of communication is inadequate and for which prior approval from your Manager/Foreman has been received.

**The office will book all travel. In the event that there is an urgent situation, please refer to the following.**

#### Advances

T&T does not generally provide cash travel advances. In cases where travel is not booked directly through the office, you will be expected to use personal credit cards and/or your own cash and submit approved expenses on the standard Expense Report Form. Travelers should review reimbursement guidelines before spending personal funds for business travel to determine if such

expenses are reimbursable. T&T Industrial, Inc. reserves the right to deny reimbursement of travel-related expenses for failure to comply with policies and procedures.

### Travel Expenses

T&T pays the actual amounts incurred for appropriate expenses when you are on travel assignments. Examples of typical expenses include the following:

- Airline tickets.
- Meals and lodging. **Meals exceeding the allowed per diem per day for that job and/or \$75 per day will not be reimbursed.**
- Car rental, bus, taxi, parking.
- Telephone and fax.
- Laundry and dry cleaning (trips exceeding one week only, unless emergency).
- Business supplies and services.
- Associated gratuities.
- Other expenses necessary to achieve the work purposes.
- Alcohol is not an approved expense.

### Family Members

T&T will not pay the travel expenses of spouses or other family members.

### Air Travel

Travelers are expected to obtain the lowest available airfare that reasonably meets business travel needs and are encouraged to book flights at least 21 days in advance to avoid premium airfare pricing.

Travelers should book economy or tourist class airfares when traveling on Company business. In addition, private, noncommercial aircraft or chartered aircraft is not to be used, and no more than two Company officers should travel together on the same flight. If the advantages of business- or first-class are necessary to reasonably accommodate a disability or medical need, the traveler must provide a written statement from a doctor clearly explaining the specific accommodation(s) required that necessitate higher-class amenities; do not include a diagnosis.

### Hotels

T&T Industrial, Inc. will reimburse lodging expenses at reasonable, single occupancy or standard business room rates. When the hotel is the conference or convention site, reimbursement will be limited to the conference rate.

Lodging on the day before and after the scheduled business event is permissible unless timing allows for a reasonable same-day departure or arrival. Reimbursement for lodging after official business is completed requires prior, verbal approval from their manager.

Only the room rate plus tax is reimbursable. Personal expenses such as phone calls, internet access (not required for work purposes), movies/entertainment, refreshment bars, alcohol, etc. incurred at the hotel will not be reimbursed.

Include a final, itemized printout of your bill obtained at check-out from the hotel.

- If meals are included on the final hotel bill, itemized receipts are required to reimburse those costs. You may have to specifically ask for a copy of these itemized meal receipts.
- If meals are covered by a per diem daily allowance, meals on a hotel bill that are paid for with T&T Industrial, Inc. funds are not allowable and must be deducted from the requested per diem reimbursement.

## Insurance

T&T does not pay for personal travel insurance for employees.

## Rental Cars

A commercial rental vehicle as a primary mode of transportation is authorized only if the rental vehicle is more economical than any other type of public transportation, or if the destination is not otherwise accessible. Vehicle rental at a destination city is reimbursable. A final and itemized receipt is required for documentation.

T&T Industrial, Inc. authorizes the most economical vehicle available up to a “midsize” category. The rental agreement must clearly show the type of car rented, dates of rental, departure/arrival locations, itemization of all costs as well as total cost.

Drivers must adhere to the rental requirements, and restrictions must be followed. Travelers are strongly encouraged to fill the gas tank before returning the vehicle to the rental agency to avoid service fees and more expensive fuel rates.

## *Insurance Coverage Requirements for Rental Cars*

Loss/Damage Waiver - T&T Industrial, Inc. requires the purchase of a physical damage waiver to protect against fees associated with physical damage and loss of use in the event of an accident.

- Personal Accident/Liability Insurance – T&T Industrial, Inc. does not require the purchase of this coverage. An employee’s personal auto insurance policy should provide primary liability coverage for the driver.

Drivers should also be aware of the extent of coverage (if any) provided by their personal automobile insurance company for travel that is business or not personal in nature.

## Personal Vehicles

When using your own vehicle for business purposes, you must have a valid driver’s license issued within the United States, maintain insurance coverage as required by law, and have an acceptable driving record. Travel between your home and primary office is not considered to be business travel. You may not use your personal vehicle for business travel without prior authorization. Every attempt should be made to utilize the use of courier and delivery services in order to avoid hazard of liability and the time away from work.

Mileage is reimbursable at the current IRS-allowed rate for miles driven using your personal vehicle. Mileage is not allowable for rented vehicles. The IRS-allowed mileage rate is inclusive of all vehicle-related expenses, including fuel, wear and tear, and personal auto insurance. In the case of personal vehicle use, employees should always request mileage reimbursement rather than providing gas receipts.

The President must authorize any deviation from this policy.

## Reporting

Report approved expenses to your manager and Human Resources, and include a description of the expense, its business purpose, date, place, and the participants.



### **11.3 Use of Employer Credit Cards**

All employees in the possession of a credit card issued by T&T Industrial, Inc. will adhere to the strictest guidelines of responsibility for the protection and proper use of that card. Credit card purchases related to Company vehicle use (gas, oil, etc.) under \$100 do not require prior approval. Credit card purchases for vehicle use over \$100 and any other business purchases over \$100 must receive prior approval from your Manager/Foreman.

Submit all sales receipts generated by use of T&T credit card weekly to the office. Your Company credit card may not be used for personal expenses. Use of T&T credit card is restricted to approved business-related expenses.

Any unauthorized purchases made with a Company credit card will be the cardholder's responsibility. You must reimburse any such purchase to T&T within 7 days.

Immediately report lost or stolen Company cards to your Manager/Foreman. Failure to follow this policy may result in disciplinary action up to and including discharge.

## **12.0 Computer, Vehicle, and Equipment Use**

### **12.1 Authorization for Use of Personal Vehicle**

You must get approval before using your personal vehicle for business use. All employees required to operate a motor vehicle as part of their employment duties must maintain a valid driver's license, acceptable driving record, and appropriate insurance coverage. T&T Industrial, Inc. may run a motor vehicle department check to determine your driving record. It is your responsibility to provide a copy of your current driver's license and insurance coverage for your personnel file. New proof of insurance is required every time your policy expires and renews. Any changes in your driving record, including, but not limited to, driving infractions or changes to your insurance policy, must be reported to T&T.

If you use your personal vehicle in the course and scope of employment, you may not operate such vehicle while:

1. Under the influence of drugs, alcohol, or any other substance that might impair your judgment or ability to drive; or
2. Texting, emailing, or otherwise using a cell phone or other handheld device without utilizing a hands-free device.

### **12.2 Use of Employer Vehicles**

Company vehicles are to be used for T&T Industrial, Inc. business only. Unless the use of the vehicle has been approved for personal use, personal or outside business use is strictly prohibited.

If you drive a Company vehicle, all infractions or violations while driving the vehicle and all restrictions, suspensions, or revocations against your driver's license must be immediately reported to your Manager/Foreman.

When a Company vehicle cannot be operated, is unsafe for use, or has been damaged, notify your Manager/Foreman immediately.

As the driver of a Company vehicle, you are responsible for the vehicle while in your charge and must not permit unauthorized persons to drive it. Vehicles are not specific to one certain employee and should always be available for Company use and as such you are also responsible for the daily housekeeping of the vehicle; it is to remain clean, uncluttered and trash removed.

You may not operate a motor vehicle while under the influence of alcohol or a chemical substance or other substance that can impair judgment. You may not operate a motor vehicle while texting, emailing, or

otherwise using a cell phone or other handheld device without utilizing a hands-free device.

Multiple driving moving violations that appear on the annual state department of motor vehicle check will result in suspension of rights to drive a Company vehicle or drive a personal vehicle on Company business. Suspension of rights will continue until one year has passed with no infractions. If there are persistent and ongoing problems with driving infractions, and driving a vehicle is a part of successful execution of job responsibilities, you may be terminated.

## **12.4 GPS Monitoring of Employer Vehicles**

T&T Industrial, Inc. desires to strike the appropriate balance between today's technologies, your desire for privacy, and our interests in protecting Company vehicles, equipment, and drivers. Due to safety, efficiency, and other business purposes, T&T uses GPS technology to monitor the whereabouts of our vehicles at all times.

Questions concerning vehicle monitoring should be directed to Human Resources. Questions concerning the proper use of any vehicles should be directed to your Manager/Foreman and/or safety officer once appointed.

If you abuse the privilege of driving company vehicles, you will be subject to corrective action, up to and including termination of employment. If necessary, T&T will also advise law enforcement officials of any illegal conduct.

## **12.5 Personal Cell Phone/Mobile Device Use**

While T&T Industrial, Inc. permits employees to bring personal cell phones and other mobile devices (i.e. smart phones, tablets, laptops) into the workplace, you must not allow the use of such devices to interfere with your job duties or impact workplace safety and health.

Use of personal cell phones and mobile devices at work can be distracting and disruptive and cause a loss of productivity. Thus, you should primarily use such personal devices during nonworking time, such as breaks and meal periods. During this time, use devices in a manner that is courteous to those around you. Outside of nonworking time, use of such devices should be minimal and limited to emergency use only. If you have a device that has a camera and/or audio/video recording capability, you are restricted from using those functions on Company property unless authorized in advance by management or when they are used in a manner consistent with your right to engage in concerted activity under section 7 of the National Labor Relations Act (NLRA).

You are expected to comply with Company policies regarding the protection of confidential and proprietary information when using personal devices.

While operating a vehicle on work time, T&T requires that the driver's personal cell phone/mobile device be turned off. If you need to make or receive a phone call while driving, pull off the road to a safe location unless you have the correct hands-free equipment for the device that is in compliance with applicable state laws.

You may not connect your personal device to T&T network or to Company equipment (computers, printers, etc.). Please coordinate with the office manager if you have a need.

Nothing in this policy is intended to prevent employees from engaging in protected concerted activity under the NLRA.

You will be subject to disciplinary action up to and including termination of employment for violation of this policy.

## 12.6 Use of Company Technology

This policy is intended to provide T&T Industrial, Inc. employees with the guidelines associated with the use of T&T information technology (IT) resources and communications systems.

This policy governs the use of all IT resources and communications systems owned by or available at T&T, and all use of such resources and systems when accessed using your own devices, including but not limited to:

- Email systems and accounts.
- Internet and intranet access.
- Telephones and voicemail systems, including wired and mobile phones, smartphones, and pagers.
- Printers, photocopiers, and scanners.
- Fax machines, e-fax systems, and modems.
- All other associated computer, network, and communications systems, hardware, peripherals, and software, including network key fobs and other devices.
- Closed-circuit television (CCTV) and all other physical security systems and devices, including access key cards and fobs.

### General Provisions

Company IT resources and communications systems are to be used for business purposes only unless otherwise permitted under applicable law.

All content maintained in Company IT resources and communications systems are the property of T&T. Therefore, employees should have no expectation of privacy in any message, file, data, document, facsimile, telephone conversation, social media post, conversation, or any other kind or form of information or communication transmitted to, received, or printed from, or stored or recorded on Company electronic information and communications systems.

T&T reserves the right to monitor, intercept, and/or review all data transmitted, received, or downloaded over Company IT resources and communications systems in accordance with applicable law. Any individual who is given access to the system is hereby given notice that T&T will exercise this right periodically, without prior notice and without prior consent.

The interests of T&T in monitoring and intercepting data include, but are not limited to: protection of Company trade secrets, proprietary information, and similar confidential commercially-sensitive information (i.e. financial or sales records/reports, marketing or business strategies/plans, product development, customer lists, patents, trademarks, etc.); managing the use of the computer system; and/or assisting employees in the management of electronic data during periods of absence.

You should not interpret the use of password protection as creating a right or expectation of privacy, nor should you have a right or expectation of privacy regarding the receipt, transmission, or storage of data on Company IT resources and communications systems.

Do not use Company IT resources and communications systems for any matter that you would like to be kept private or confidential.

### Violations

If you violate this policy, you will be subject to corrective action, up to and including termination of employment. If necessary, T&T will also advise law enforcement officials of any illegal conduct.

## 12.7 Computer Security and Copying of Software

Software programs purchased and provided by T&T Industrial, Inc. are to be used only for creating, researching, and processing materials for Company use. By using Company hardware, software, and networking systems you assume personal responsibility for their use and agree to comply with this policy and other applicable Company policies, as well as city, state, and federal laws and regulations.

All software acquired for or on behalf of T&T or developed by Company employees or contract personnel on behalf of T&T, is and will be deemed Company property. It is the policy of T&T to respect all computer software rights and to adhere to the terms of all software licenses to which T&T is a party.

You may not illegally duplicate any licensed software or related documentation. Unauthorized duplication of software may subject you and/or T&T to both civil and criminal penalties under the United States Copyright Act. To purchase software, obtain your manager's approval. All software acquired by T&T must be purchased through the office.

You may not duplicate, copy, or give software to any outsiders including clients, contractors, customers, and others. You may use software on local area networks or on multiple machines only in accordance with applicable license agreements entered into by T&T.

## 12.8 Security

All employees are responsible for helping to make T&T Industrial, Inc. a secure work environment. Upon leaving work, lock all desks, lockers, and doors protecting valuable or sensitive material in your work area and report any lost or stolen keys, passes, or similar devices to your Manager/Foreman immediately. Refrain from discussing specifics regarding Company security systems, alarms, passwords, etc. with those outside of T&T.

Immediately advise your Manager/Foreman of any known or potential security risks and/or suspicious conduct of employees, customers, or guests of T&T. Safety and security is the responsibility of all employees and we rely on you to help us keep our premises secure.

## 12.9 Social Media Policy

At T&T Industrial, Inc., we recognize the Internet provides unique opportunities to participate in interactive discussions and share information using a wide variety of social media. However, use of social media also presents certain risks and carries with it certain responsibilities. To minimize risks to T&T, you are expected to follow our guidelines for appropriate use of social media.

This policy applies to all employees who work for T&T.

### Guidelines

For purposes of this policy, **social media** includes all means of communicating or posting information or content of any sort on the Internet, including to your own or someone else's web log or blog, journal or diary, personal website, social networking or affinity website, web bulletin board or a chat room, whether associated or affiliated with T&T, as well as any other form of electronic communication.

Company principles, guidelines, and policies apply to online activities just as they apply to other areas of work. Ultimately, you are solely responsible for what you communicate in social media. You may be personally responsible for any litigation that may arise should you make unlawful defamatory, slanderous, or libelous statements against any customer, Manager, owner, or employees of T&T.

### Know and Follow the Rules

Ensure your postings are consistent with these guidelines. Postings that include unlawful discriminatory remarks, harassment, and threats of violence or other unlawful conduct will not be tolerated and may subject you to disciplinary action up to and including termination.

### *Be Respectful*

T&T cannot force or mandate respectful and courteous activity by employees on social media during nonworking time. If you decide to post complaints or criticism, avoid using statements, photographs, video, or audio that reasonably could be viewed as unlawful, slanderous, threatening, or that might constitute unlawful harassment. Examples of such conduct might include defamatory or slanderous posts meant to harm someone's reputation or posts that could contribute to a hostile work environment on the basis of race, sex, disability, age, national origin, religion, veteran status, or any other status or class protected by law or Company policy. Your personal posts and social media activity should not reflect upon or refer to T&T.

### *Maintain Accuracy and Confidentiality*

When posting information:

- Maintain the confidentiality of trade secrets, intellectual property, and confidential commercially sensitive information (i.e. financial or sales records/reports, marketing or business strategies/plans, product development, customer lists, patents, trademarks, etc.) related to T&T.
- Do not create a link from your personal blog, website, or other social networking site to a Company website that identifies you as speaking on behalf of T&T.
- Never represent yourself as a spokesperson for T&T. If T&T is a subject of the content you are creating, do not represent yourself as speaking on behalf of T&T. Make it clear in your social media activity that you are speaking on your own behalf.
- Respect copyright, trademark, third-party rights, and similar laws and use such protected information in compliance with applicable legal standards.

### *Using Social Media at Work*

Do not use social media while on your work time, unless it is work related as authorized by your manager or consistent with policies that cover equipment owned by T&T.

### *Media Contacts*

If you are not authorized to speak on behalf of T&T, do not speak to the media on behalf of T&T. Direct all media inquiries for official Company responses to Human Resources.

### *Retaliation and Your Rights*

Retaliation or any other negative action is prohibited against anyone who, based on a reasonable belief, reports a possible deviation from this policy or cooperates in an investigation. Those who retaliate against others for reporting a possible deviation from this policy or for cooperating in an investigation will be subject to disciplinary action, up to and including termination.

Nothing in this policy is designed to interfere with, restrain, or prevent employees from communications regarding wages, hours, or other terms and conditions of employment, or to restrain employees in exercising any other right protected by law. All employees have the right to engage in or refrain from such activities.

## **12.10 Workplace Privacy and Right to Inspect**

T&T Industrial, Inc. property, including but not limited to lockers, phones, computers, tablets, desks, work place areas, vehicles, or machinery, remains under the control of T&T and is subject to inspection at any time, without notice to any employees, and without their presence.

You should have no expectation of privacy in any of these areas. We assume no responsibility for the loss of, or damage to, your property maintained on Company premises including that kept in lockers and desks.

## **12.11 Off-Duty Use of Employer Property or Premises**

You may not use T&T Industrial, Inc. property for personal use during working time. You are responsible for returning Company property in good condition and repairing or replacing any property damaged as the result of personal use or as the result of negligence. This includes use of copy machines, computers, Company products, office supplies, scraps, machinery, tools equipment or consumables for personal use without prior authorization.

It is Company policy to control off duty and nonworking hour use of Company facilities either for business or personal reasons. You are prohibited from using Company facilities during off duty or nonworking hours without the written consent of your Manager/Foreman. If you use Company facilities during your off-duty hours or Company off-hours, you may be required to log-in and log-out on the time clock maintained by T&T office or shop manager.

## **13.0 Termination of Employment**

### **13.1 Resignation Policy**

T&T Industrial, Inc. hopes that your employment with T&T will be a mutually rewarding experience; however, T&T acknowledges that varying circumstances can cause you to resign employment. T&T intends to handle any resignation in a professional manner with minimal disruption to the workplace.

#### Notice

T&T requests that you provide a minimum of two weeks' notice of your resignation. If you are a Manager/Foreman, you are requested to provide a minimum of four weeks' notice. Provide a written resignation letter to your Manager/Foreman. If you provide less notice than requested, T&T may deem you to be ineligible for rehire, depending on the circumstances of the notice given.

T&T reserves the right to provide you with pay in lieu of notice in situations where job or business needs warrant.

#### Final Pay

In cases of voluntary termination, final paychecks will be issued on the next regular payday. In cases of an involuntary termination, final pay is issued on the date of termination or in compliance with state laws. Final pay includes payment for all hours worked since the employee's last payday and payment for any earned but unused vacation time.

Final pay (for Voluntary and Involuntary Terminations) is reduced by:

- Taxes and other required legal deductions, and
- Authorized deductions such as employee contributions to the premium cost of the group health plan, failure to return a company owned computer, unauthorized credit card expenses and the outstanding balance of any advance of salary (including vacation). Notify T&T if your address changes during the calendar year in which resignation occurs to ensure tax information is sent to the correct address.

#### Return of Property

Return all Company property at the time of separation. Failure to return some items may result in deductions from your final paycheck where state law allows. In some circumstances, T&T may pursue criminal charges for failure to return Company property.

## **13.2 Post-Employment References**

T&T Industrial, Inc.'s policy is to confirm dates of employment and job title only. With written authorization from the employee/former employee, T&T will confirm compensation. Forward any requests for employment verification to Human Resources or appropriate department.

## **13.3 Exit Interview**

You may be asked to participate in an exit interview when you leave T&T Industrial, Inc. The purpose of the exit interview is to provide management with greater insight into your decision to leave employment; identify any trends requiring attention or opportunities for improvement; and to assist T&T in developing effective recruitment and retention strategies. Your cooperation in the exit interview process is appreciated.

## **Closing Statement**

Thank you for reading our handbook. We hope it has provided you with an understanding of our mission, history, and structure as well as our current policies and guidelines. We look forward to working with you to create a successful Company and a safe, productive, and pleasant workplace.

Carson & Jana Tesch, Owners

T&T Industrial, Inc.

## Acknowledgment of Receipt and Review

By signing below, I acknowledge that I have received a copy of the T&T Industrial, Inc. Employee Handbook (handbook) and that I have read it, understand it, and agree to comply with it. I understand that T&T has the maximum discretion permitted by law to interpret, administer, change, modify, or delete the rules, regulations, procedures, and benefits contained in the handbook at any time with or without notice. No statement or representation by a supervisor, manager, or any other employee, whether oral or written, can supplement or modify this handbook. Changes can only be made if approved in writing by the President of T&T. I also understand that any delay or failure by T&T to enforce any rule, regulation, or procedure contained in the handbook does not constitute a waiver on behalf of T&T or affect the right of T&T to enforce such rule, regulation, or procedure in the future.

I understand that neither this handbook nor any other communication by a management representative or other, whether oral or written, is intended in any way to create a contract of employment. I further understand that, unless I have a written employment agreement signed by an authorized Company representative, I am employed "at-will" (to the extent permitted by law) and this handbook does not modify my "at-will" employment status.

If I am covered by a written employment agreement (signed by an authorized Company representative) or a collective-bargaining agreement that conflicts with the terms of this handbook, I understand that the terms of the employment agreement or collective-bargaining agreement will control.

This handbook is not intended to preclude or dissuade employees from engaging in legally protected activities under the National Labor Relations Act (NLRA).

This handbook supersedes any previous handbook or policy statements, whether written or oral, issued by T&T Industrial, Inc..

If I have any questions about the content or interpretation of this handbook, I will contact Human Resources.

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Signature

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Date

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Print Name